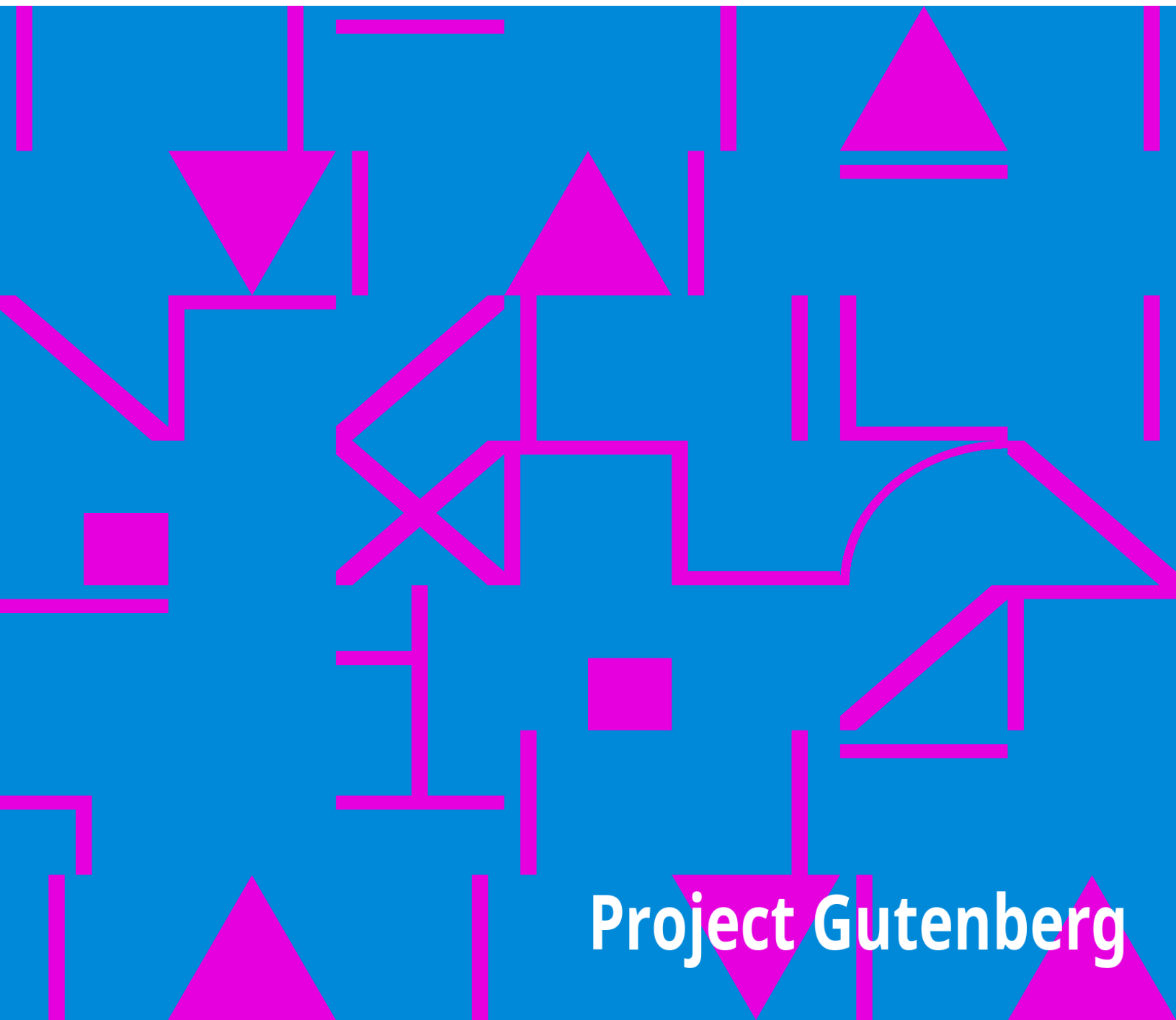


The Bay State Monthly, Volume 3, No. 1

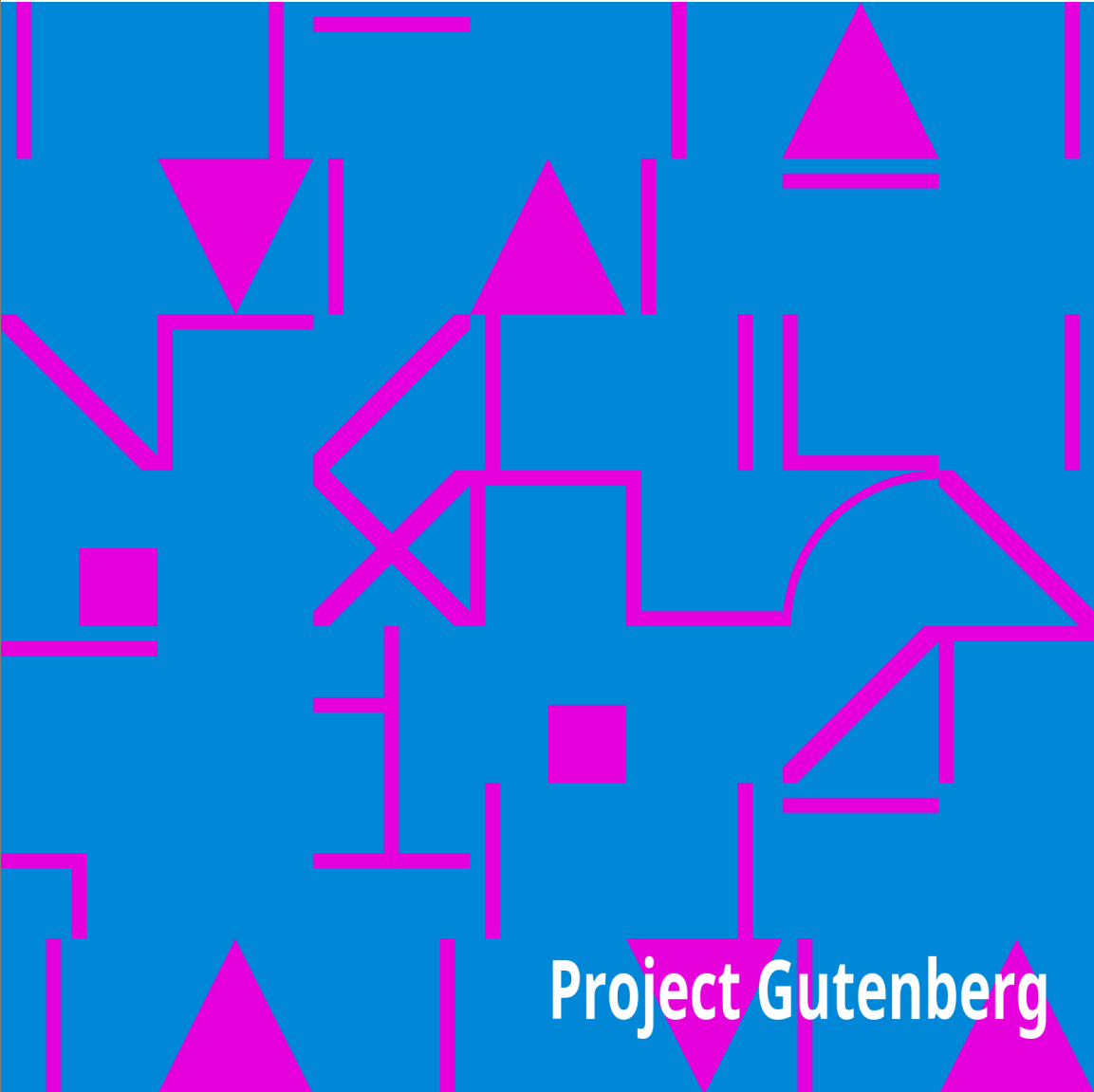
Various

An abstract geometric pattern consisting of various shapes like triangles, squares, and lines in shades of blue and green, scattered across the page.

Project Gutenberg

The Bay State Monthly, Volume 3, No. 1

Various

An abstract geometric pattern on a blue background, featuring various magenta shapes including triangles, squares, rectangles, and lines. The pattern is dense and covers the lower two-thirds of the page.

Project Gutenberg

The Project Gutenberg eBook of The Bay State Monthly, Volume 3, No. 1

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Bay State Monthly, Volume 3, No. 1

Author: Various

Release date: February 9, 2006 [eBook #17721]

Language: English

Other information and formats: www.gutenberg.org/ebooks/17721

Credits: Produced by Joshua Hutchinson, David Garcia and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by Cornell University Digital Collections)

*** START OF THE PROJECT GUTENBERG EBOOK THE BAY STATE
MONTHLY, VOLUME 3, NO. 1 ***

THE

Bay State Monthly

A Massachusetts Magazine
OF
LITERATURE, HISTORY, BIOGRAPHY, AND STATE PROGRESS

VOLUME III

BOSTON
JOHN N. McCLINTOCK AND COMPANY
PUBLISHERS
No. 31 MILK STREET
1885

Entered according to Act of Congress, in the year 1885, by John N. McClintock and Company, in the office of the Librarian of Congress at Washington. All rights reserved.

Contents

[CONTENTS OF VOLUME III.](#)

[CHARLES CARLETON COFFIN.](#)

[COLONEL JOHN B. CLARKE.](#)

[DENMAN THOMPSON.](#)

[NATIONAL BANKS.](#)

[CONCORD, N.H.](#)

[CLAYTON-BULWER TREATY VS. MONROE DOCTRINE.](#)

[THE DIVORCE LEGISLATION OF MASSACHUSETTS.](#)

[SHEM DROWNE AND HIS HANDIWORK.](#)

[THE WEDDING IN YE DAYS LANG SYNE.](#)

[A REMINISCENCE OF COL. FLETCHER WEBSTER.](#)

[OLD DORCHESTER.](#)

[HOLLIS STREET CHURCH.](#)

[ELIZABETH.](#)

[PUBLISHERS' DEPARTMENT.](#)

CONTENTS OF VOLUME III.

Adams, Samuel, The Patriot, (4 Illustrations)	Edward P. Guild	401
Amesbury, The Home of Whittier, (3 Illustrations)	Frances C. Sparhawk	418
Andrew, John Albion, (2 Illustrations)		141
Among the Books		136, 218, 306, 388, 469
Assessment Insurance	G.A. Litchfield	317
Assessment Life Insurance	Sheppard Homans	411
Authoritative Literature of the Civil War	George Lowell Austin	313, 408
Boston Latin School, The		74
Christopher Gault.—A Story	Edward P. Guild	278
City of Worcester, The (18 Illustrations)	Fanny Bullock Workman	147
Clarke, Colonel John B., Sketch of the Life of		9
Civil War, Authoritative Literature of the		313, 408
Clayton-Bulwer Treaty vs. Monroe Doctrine	George W. Hobbs	17
Coffin, Charles Carleton, Sketch of the life of		1
Concord Men and Memories, (6 Illustrations)	Geo. B. Bartlett	224
Concord, N.H., Impression D'un Français	Prof. Emile Pingault	16

Conspiracy of 1860-61, The	Geo. Lowell Austin	233
Crapo, Hon. William Wallace, Biographical sketch	Edward P. Guild	309
David, Barnabas Brodt	Rev. J.G. Davis D.D.	69
Divorce Legislation of Massachusetts	Chester F. Sanger	27
Drowne, Shem, and his Handiwork	Elbridge H. Goss	33
Early English Poetry	Prof. Edwin H. Sanborn LL.D.	125
Editor's Table		139, 215, 300, 384, 463
Elizabeth, A Romance of Colonial Days	Frances C. Sparhawk	48 , 107, 202, 289, 384, 447
First New England Witch	Willard H. Morse M.D.	270
Fort Shirley	Prof. A.L. Perry	341
Grimke Sisters, The	George Lowell Austin	183
Hero of Lake Erie, The (1 Illustration)	Hon. William P. Sheffield	321
Hingham, (3 Illustrations)	Francis H. Lincoln	258
Historical Record		303, 386, 465
Hollis Street Church		47
Home of Whittier, Amesbury The (3 Illustrations)	Frances C. Sparhawk	418
House of Ticknor, The (4 Illustrations)	Barry Lyndon	266
Insurance, Assessment	G.A. Litchfield	317
Insurance, Assessment Life	Sheppard Homans	411
Jackson, Helen Hunt		256

Kate Field's New Departure (1 Illustration)	Edward Increase Mather	429
Lake Erie, The Hero of (1 Illustration)	Hon. William P. Sheffield	321
Lincoln, Abraham	George Lowell Austin	165
Long, John D., A Brief Biography		221
Marblehead in 1861, The Response of	Samuel Roads Jr.	378
March of the 6th Regiment, The	Rev. Charles Babbidge	374
Marsh, Sylvester, Sketch of the life of	Chas. Carleton Coffin	65
Massachusetts, The Present Resources of	H.K.M.	439
Massachusetts, Divorce Legislation	Chester F. Sanger	27
Massachusetts Hills, Rambles Among	Atherton P. Mason M.D.	101
Memoranda for the Month		220
Model Industrial City, A (11 Illustrations)	Fanny M. Johnson	328
Mormon Church, The	Victoria Reed	348
Nantasket Beach	Edward P. Guild	179
Nantucket, Ten days in (2 Illustrations)	Elizabeth Porter Gould	190
National Banks—Surplus Funds and Net Profits	George H. Wood	14
Nurse, Rebecca, Homestead of	Elizabeth Porter Gould	436
O'Brien Hugh	Col. Chas. H. Taylor	253

Old Dorchester, Historical	Charles M. Barrows	39
Paine, Hon. Henry W.	Prof. William Mathews, LL.D.	391
Past and Future of Silver, The	David M. Balfour	97
Patriot, Samuel Adams, The (4 Illustrations)	Edward P. Guild	401
Pickett's Charge, Portrait and diagram	Charles A. Patch	397
Precious Metals, The	David M. Balfour	415
Publisher's Department		64 , 308, 390, 472
Phillips, John, with Portrait		249
Rambles Among Massachusetts Hills	Atherton P. Mason M.D.	101
Resources of Massachusetts, The Present	H.K.M.	439
Response of Marblehead in 1861, The	Samuel Roads, Jr.	378
Silver, Past and Future of	David M. Balfour	97
Sixth Regiment, The March of The	Rev. Charles Babbidge	374
Ten Days In Nantucket (2 Illustrations)	Elizabeth Porter Gould	190
Thompson, Denman, Sketch of the Life of		12
Ticknor, The House of (4 Illustrations)	Barry Lyndon	266
Tommy Taft, A Story of Boston Town	A.L.G.	244
Two Days with The A.M.C.	Helen M. Winslow	367
Two Reform Mayors of Boston		249
Webster, Col. Fletcher, A reminiscence of		38

Webster, Daniel, The Last Portrait of		340
Wedding in Ye Days Lang Syne	Rev. Anson Titus	36
White and Franconia Mountains, The (24 Illustrations)	Fred Myron Colby	76
Witch, The first New England	Willard H. Morse M.D.	270
Worcester, The City of (18 Illustrations)	Fanny Bullock Workman	147

POEMS.

By The Sea	Teresa Herrick	377
Equinoctial	Sidney Maxwell	383
Growing Old		299
In Ember Days	Adelaide G. Waldron	277
Memory's Pictures	Charles Carleton Coffin (1846)	124
The Muse of History	Elizabeth Porter Gould	248
Room At The Top		366
The Old State House	Sidney Maxwell	414
Idleness	Sidney Harrison	183
A Birthday Sonnet	George W. Bungay	201

STEEL ENGRAVINGS.

Charles Carleton Coffin	Facing 1
John B. Clarke	9
Sylvester Marsh	65
John Albion Andrew	141
John D. Long	221
Hugh O'Brien	253
William Wallace Crapo	309



Charles Carleton Coffin

CHARLES CARLETON COFFIN

THE BAY STATE MONTHLY.

A Massachusetts Magazine

VOL. III. APRIL, 1885. NO. I.

CHARLES CARLETON COFFIN.

Among the emigrants from England to the western world in the great Puritan exodus was Joanna Thember Coffin, widow, and her son Tristram, and her two daughters, Mary and Eunice. Their home was in Brixton, two miles from Plymouth, in Devonshire. Tristram was entering manhood's prime—thirty-three years of age. He had a family of five children. Quite likely the political troubles between the King and Parliament, the rising war cloud, was the impelling motive that induced the family to leave country, home, friends, and all dear old things, and become emigrants to the New World. Quite likely Tristram, when a youth, in 1620, may have seen the Mayflower spread her white sails to the breeze and fade away in the western horizon, for the departure of that company of pilgrims must have been the theme of conversation in and around Plymouth. Without doubt it set the young man to thinking of the unexplored continent beyond the stormy Atlantic. In 1632 his neighbors and friends began to leave, and in 1642 he, too, bade farewell to dear old England, to become a citizen of Massachusetts Bay.

He landed at Newbury, settled first in Salisbury, and ferried people across the Merrimack between Salisbury and Newbury. His wife, Dionis, brewed beer for thirsty travellers. The Sheriff had her up before the courts for charging more per mug than the price fixed by law, but she went scot free on proving that she put in an extra amount of malt. We may think of the grave and reverend Justices ordering the beer into court and settling the question by personal examination of the foaming mugs,—smacking their lips satisfactorily, quite likely testing it a second time.

Tristram Coffin became a citizen of Newbury and built a house, which is still standing. In 1660 he removed with a portion of his family to Nantucket, dying there in 1681, leaving two sons, from whom have descended all the Coffins of the country—a numerous and widespread family.

One of Tristram's decendants, Peter, moved from Newbury to Boscawen, New Hampshire, in 1766, building a large two-storied house. He became a

prominent citizen of the town—a Captain of the militia company, was quick and prompt in all his actions. The news of the affair at Lexington and Concord April 19, 1775, reached Boscawen on the afternoon of the next day. On the twenty-first Peter Coffin was in Exeter answering the roll call in the Provincial assembly—to take measures for the public safety.

His wife, Rebecca Hazelton Coffin, was as energetic and patriotic as he. In August, 1777, everybody, old and young, turned out to defeat Burgoyne. One soldier could not go, because he had no shirt. It was this energetic woman, with a babe but three weeks old, who cut a web from the loom and sat up all night to make a shirt for the soldier. August came, the wheat was ripe for the sickle. Her husband was gone, the neighbors also. Six miles away was a family where she thought it possible she might obtain a harvest hand. Mounting the mare, taking the babe in her arms, she rode through the forest only to find that all the able-bodied young men had gone to the war. The only help to be had was a barefoot, hatless, coatless boy of fourteen.

"He can go but he has no coat," said the mother of the boy.

"I can make him a coat," was the reply.

The boy leaped upon the pillion, rode home with the woman—went out with his sickle to reap the bearded grain, while the house wife, taking a meal bag for want of other material, cutting a hole in the bottom, two holes in the sides, sewing a pair of her own stockings on for sleeves, fulfilled her promise of providing a coat, then laid her babe beneath the shade of a tree and bound the sheaves.

It is a picture of the trials, hardships and patriotism of the people in the most trying hour of the revolutionary struggle.

The babe was Thomas Coffin—father of the subject of this sketch, Charles Carleton Coffin, who was born on the old homestead in Boscawen, July 26, 1823,—the youngest of nine children, three of whom died in infancy.

The boyhood of the future journalist, correspondent and author was one of toil rather than recreation. The maxims of Benjamin Franklin in regard to idleness, thrift and prosperity were household words.

"He who would thrive must rise at five."

In most farm-houses the fire was kindled on the old stone hearth before that hour. The cows were to be milked and driven to the pasture to crop the green grass before the sun dispatched the beaded drops of dew. They must be brought home at night.

In the planting season, corn and potatoes must be put in the hill. The youngest boy must ride the horse in furrowing, spread the new-mown grass, stow away the hay high up under the roof of the barn, gather stones in heaps after the wheat was reaped, or pick the apples in the orchard. Each member of the family must commit to memory the verses of Dr. Watts:

"Then what my hands shall find to do
Let me with all my might pursue,
For no device nor work is found
Beneath the surface of the ground."

The great end of life was to do something. There was a gospel of work, thrift and economy continually preached. To be idle was to serve the devil.

"The devil finds some mischief still for idle hands to do."

Such teaching had its legitimate effect, and the subject of this sketch in common with the boys and girls of his generation made work a duty. What was accepted as duty became pleasure.

Aside from the district school he attended Boscawen Academy a few terms. The teaching could not be called first-class instruction. The instructors were students just out of college, who taught for the stipend received rather than with any high ideal of teaching as a profession. A term at Pembroke Academy in 1843 completed his acquisition of knowledge, so far as obtained in the schools.

The future journalist was an omnivorous reader. Everything was fish that came to the dragnet of this New Hampshire boy—from "Sinbad" to "Milton's Paradise Lost," which was read before he was eleven years old.

The household to which he belonged had ever a goodly supply of weekly papers, the *New Hampshire Statesman*, the *Herald of Freedom*, the *New*

Hampshire Observer, all published at Concord; the first political, the second devoted to anti-slavery, the third a religious weekly. In the westerly part of the town was a circulating library of some one hundred and fifty volumes, gathered about 1816—the books were dog-eared, soiled and torn. Among them was the "History of the Expedition of Lewis and Clark up the Missouri and down the Columbia to the Pacific Ocean," which was read and re-read by the future correspondent, till every scene and incident was impressed upon his memory as distinctly as that of the die upon the coin. Another volume was a historical novel entitled "A Peep at the Pilgrims," which awakened a love for historical literature. Books of the Indian Wars, Stories of the Revolution, were read and re-read with increasing delight. Even the *Federalist*, that series of papers elucidating the principles of Republican government, was read before he was fourteen. There was no pleasure to be compared with that of visiting Concord, and looking at the books in the store of Marsh, Capen and Lyon, who kept a bookstore in that, then, town of four thousand inhabitants—the only one in central New Hampshire.

Without doubt the love for historical literature was quickened by the kind patronage of John Farmer, the genial historian, who was a visitor at the Boscawen farm-house, and who had delightful stories to tell of the exploits of Robert Rogers and John Stark during the French and Indian wars.

Soldiers of the Revolution were living in 1830. Eliphalet Kilburn, the grandfather of Charles Carleton Coffin on the maternal side, was in the thick of battle at Saratoga and Rhode Island, and there was no greater pleasure to the old blind pensioner than to narrate the stories of the Revolution to his listening grandchild. Near neighbors to the Coffin homestead were Eliakim Walker, Nathaniel Atkinson and David Flanders, all of whom were at Bunker Hill—Walker in the redoubt under Prescott; Atkinson and Flanders in Captain Abbott's company, under Stark, by the rail fence, confronting the Welch fusileers.

The vivid description of that battle which Mr. Coffin has given in the "Boys of '76," is doubtless due in a great measure to the stories of these pensioners, who often sat by the old fire-place in that farm-house and fought their battles over again to the intense delight of their white-haired auditor.

Ill health, inability for prolonged mental application, shut out the future correspondent, to his great grief, from all thoughts of attempting a collegiate course. While incapacitated from mental or physical labor he obtained a surveyor's compass, and more for pastime than any thought of becoming a surveyor, he studied the elements of surveying.

There were fewer civil engineers in the country in 1845 than now. It was a period when engineers were wanted—when the demand was greater than the supply, and anyone who had a smattering of engineering could find employment. Mr. Coffin accepted a position in the engineering corps of the Northern Railroad, and was subsequently employed on the Concord and Portsmouth, and Concord and Claremont Railroad.

In 1846 he was married to Sallie R. Farmer of Boscawen. Not wishing to make civil engineering a profession for life he purchased a farm in his native town; but health gave way and he was forced to seek other pursuits.

He early began to write articles for the Concord newspapers, and some of his fugitive political contributions were re-published in *Littell's Living Age*.

Mr. Coffin's studies in engineering led him towards scientific culture. In 1849 he constructed the telegraph line between Harvard Observatory and Boston, by which uniform time was first given to the railroads leading from Boston. He had charge of the construction of the Telegraphic Fire Alarm in Boston, under the direction of Professor Moses G. Farmer, his brother-in-law, and gave the first alarm ever given by that system April 29, 1852.

Mr. Coffin's tastes led him toward journalism. From 1850 to 1854 he was a constant contributor to the press, sending articles to the *Transcript*, the *Boston Journal*, *Congregationalist*, and *New York Tribune*. He was also a contributor to the *Student and Schoolmate*, a small magazine then conducted by Mr. Adams (Oliver Optic).

He was for a short time assistant editor of the *Practical Farmer*, an agricultural and literary weekly newspaper. In 1854 he was employed on the *Boston Journal*. Many of the editorials upon the Kansas-Nebraska struggle were from his pen. His style of composition was developed during these years when great events were agitating the public mind. It was a period which demanded clear, comprehensive, concise, statements, and

words that meant something. His articles upon the questions of the hour were able and trenchant. One of the leading newspapers of Boston down to 1856 was the *Atlas*—the organ of the anti-slavery wing of the Whig party, of the men who laid the foundation of the Republican party. Its chief editorial writer was the brilliant Charles T. Congdon, with whom Mr. Coffin was associated as assistant editor till the paper was merged into the *Atlas and Bee*.

During the year 1858 he became again assistant on the *Journal*. He wrote a series of letters from Canada in connection with the visit of the Prince of Wales. He was deputed, as correspondent, to attend the opening of several of the great western railroads, which were attended by many men in public life. He was present at the Baltimore Convention which nominated Bell and Everett as candidates for the Presidency and Vice Presidency in 1860. He travelled west through Pennsylvania, Ohio, and Indiana, before the assembling of the Republican Convention at Chicago, conversing with public men, and in a private letter predicted the nomination of Abraham Lincoln, who, up to the assembling of the convention, had hardly been regarded as a possible candidate.

He accompanied the committee appointed to apprise Mr. Lincoln of his nomination to Springfield, spent several weeks in the vicinity—making Mr. Lincoln's acquaintance, and obtaining information in regard to him, which was turned to proper advantage during the campaign.

In the winter of 1860-61, Mr. Coffin held the position of night editor of the *Journal*. The Southern States were then seceding. It was the most exciting period in the history of the republic. There was turmoil in Congress. Public affairs were drifting with no arm at the helm. There was no leadership in Congress or out of it. The position occupied by Mr. Coffin was one requiring discrimination and judgment. The Peace Congress was in session. During the long nights while waiting for despatches, which often did not arrive till well toward morning, he had time to study the situation of public affairs, and saw, what all men did not see, that a conflict of arms was approaching. He was at that time residing in Maiden, and on the morning after the surrender of Sumter took measures for the calling of a public meeting of the citizens of that town to sustain the government. It was one of the first—if not the first of the many, held throughout the country.

Upon the breaking out of the war in 1861 Mr. Coffin left the editorial department of the *Journal* and became a correspondent in the field, writing his first letter from Baltimore, June 15, over the signature of "*Carleton*"—selecting his middle name for a *nom de plume*.

He accompanied the right wing under General Tyler, which had the advance in the movement to Bull Run, and witnessed the first encounter at Blackburn's Ford, July 18. He returned to Washington the next morning with the account, and was back again on the succeeding morning in season to witness the battle of Bull Run, narrowly escaping capture when the Confederate cavalry dashed upon the panic-stricken Union troops. He reached Washington during the night, and sent a full account of the action the following morning.

During the autumn he made frequent trips from the army around Washington to Eastern Maryland, and the upper Potomac, making long rides upon the least sign of action. Becoming convinced, in December, that the Army of the Potomac was doomed to inaction during the winter, the correspondent, furnished with letters of introduction to Generals Grant and Buell from the Secretary of War, proceeded west. Arriving at Louisville he found that General Buell had expelled all correspondents from the army. The letter from the Secretary of War vouching for the loyalty and integrity of the correspondent was read and tossed aside with the remark that correspondents could not be permitted in an army which he had the honor to command.

Mr. Coffin proceeded to St. Louis, took a look at the army then at Rolla, in Central Missouri, but discovering no signs of action in that direction made his way to Cairo where General Grant was in command. General Grant's headquarters were in the second story of a tumble-down building.

No sentinel paced before the door. Ascending the stairs and knocking, Mr. Coffin heard the answer, "Come in." Entering, he saw a man in a blue blouse sitting upon a nail-keg at a rude desk smoking a cigar.

"Is General Grant in?" he asked.

"Yes, sir."

Supposing the man on the nail keg with no straps upon his shoulder to be only a clerk or orderly, he presented his letter from the Secretary of War, with the remark, "Will you please present this to General Grant?" whereupon the supposed clerk glanced over the lines, rose, extended his hand and said, "I am right glad to see you. Please take a nail keg!"

There were several empty nail kegs in the apartment, but not a chair. The contrast to what he had experienced with General Buell was so great that the correspondent could hardly realize that he was in the presence of General Grant, who at once gave him the needed facilities for attaining information.

The rapidity of the correspondent's movements—the quickness with which he took in the military situation, may be inferred from the dates of his letters. On January 6, 1862, he wrote a letter detailing affairs at St. Louis. On the eighth, he described affairs at Rolla in Central Missouri. On the eleventh, he was writing from Cairo. The gunboats under Commodore Foot were at Cairo, and the correspondent was received with the utmost hospitality, not only by the Commodore, but by all the officers.

Upon the movement of General Zolicoffer into Kentucky, Mr. Coffin hastened to Louisville, Lexington, and Central Kentucky, but finding affairs had settled down, hastened down the Ohio River on a steamboat, reaching the mouth of the Tennessee just as the fleet under Commodore Foot was entering the Ohio after capturing Fort Henry. Commodore Foot narrated the events of the engagement, and Mr. Coffin, learning that no correspondent had returned from Fort Henry, stimulated by the thought of giving the *Boston Journal* the first information, jumped on board the cars, wrote his account on the train, and had the satisfaction of knowing that it was the first one published.

Returning to Cairo by the next train, he proceeded to Fort Donelson and was present in the cabin of the steamer "Uncle Sam" when General Buckner turned over the Fort, the Artillery, and 15,000 prisoners to General Grant. He hastened to Cairo, wrote his account on the cars, riding eastward, till it was complete, then returning, and arriving in season to jump on board the gunboat Boston for a reconnoissance of Columbus.

Mr. Coffin continued with the fleet during the operation at Island No. 10. His knowledge of civil engineering enabled him to assist Captain Maynadier of the engineers in directing the mortar firing. On one occasion while mounted on a corn crib near a farm-house to note the direction of the bombs, the Confederate artillerists sent a shell which demolished a pig-pen but a few feet distant.

While at Island No. 10, the battle of Pittsburg Landing was fought. Leaving the fleet he hastened thither, accompanied the army in its slow advance upon Corinth, was present at the battle of Farmington and the occupation of Corinth.

General Halleck, smarting under the criticism of the press, ordered all correspondents to leave, and Mr. Coffin once more joined the fleet, descending the Mississippi. During the engagement with the Confederate fleet at Memphis, he stood upon the deck of the Admiral's despatch boat with note-book and watch in hand—noting every movement. He was fully exposed, aided in hauling down the flag of the Confederate ship, "Little Rebel," and assisted in rescuing some of the wounded Confederates from the sinking vessels.

He accepted an invitation from Captain Phelps of the Benton to accompany him on shore when the city was surrendered, and saw the stars and strips go up upon the flag-staff in the public square and over the Court House.

The Army of the Potomac was in front of Richmond, and he returned east in season to chronicle the seven day's engagement on the Peninsular. The constant exposure to malaria brought on sickness, which prevented his being with the army in the engagement at the second Bull Run, but he was on the field of Antietam throughout the entire contest, and wrote an account which was published in the Baltimore *American*, of which an enormous edition was disposed of in the army—and was commended for its accuracy.

In October Mr. Coffin was once more in Kentucky, but did not reach the army in season to see the battle of Perrysville. Comprehending the situation of affairs there, that there could be no movement until the entire army was re-organized under a new commander, he returned to Virginia, accompanying the army in its march from the Potomac to Fredericksburg,

and witnessed that disastrous battle. A month later he was with the fleet off Charleston and saw the attack on Sumter by the Monitor, and the bombardment of Fort McAllister.

In April he was once more with the Army of the Potomac, arriving just as the troops were getting back to their quarters after Chancellorsville to hear the stories and collect an account of that battle.

When the Confederate army began the Gettysburg Campaign Mr. Coffin watched every movement. He was with the cavalry during the first day's struggle on that field, but was an eyewitness of the second and third days' engagement. His account was re-published in nearly every one of the large cities, was translated and re-published in France and Germany. While the armies east and west were preparing for the campaign of 1864 Mr. Coffin made an extended tour through the border states—Maryland, West Virginia, Kentucky, Missouri, Kansas, Illinois, Indiana, and Ohio, to ascertain what changes had taken place in public opinion. In May he was once more with the Army of the Potomac under its great leader, Lieutenant General Grant, and saw all the conflicts of the Wilderness, Spottsylvania, North Anna, around Hanover, Cold Harbor, the struggles in front of Petersburg through '64. Upon the occupation of Savannah by General Sherman he hastened south, having an ardent desire to enter Charleston, whenever it should be occupied by Union troops. He was successful in carrying out his desires, and with James Redpath of the New York *Tribune* leaped on shore from the deck of General Gilmore's steamer when he steamed up to take possession of the city.

Mr. Coffin's despatch announcing the evacuation and occupation of Sumter, owing to his indefatigable energy, was published in Boston, telegraphed to Washington, and read in the House of Representatives before any other account appeared, causing a great sensation.

Thus read the opening sentence:

"Off Charleston, February 18, 2 P.M. The old flag waves over Sumter and Moultrie, and the city of Charleston. I can see its crimson stripes and fadeless stars waving in the warm sunlight of this glorious day. Thanks be to God who giveth us the victory."

In March the correspondent was again with the Army of the Potomac, witnessing the last battles—Fort Steadman—Hatcher's Run—and the last grand sweep at Five Forks. He entered Petersburg in the morning—rode alone at a breakneck pace to Richmond, entering it while the city was a sea of flame, entered the Spottsville hotel while the fire was raging on three sides—wrote his name large on the register—the first to succeed a long line of Confederate Generals and Colonels. When President Lincoln arrived to enter the city, he had the good fortune to be down by the river bank, and to him was accorded the honor of escorting the party to General Weitzel's headquarters in the mansion from which Jefferson Davis had fled without standing upon the order of departure.

With the fall of Richmond, and the surrender of Appomattox, Mr. Coffin's occupation as an army correspondent ended. During these long years he found time to write three volumes for juveniles—"Days and Nights on the Battle Field," "Following the Flag," and "Winning his Way."

On July 25, 1866, Mr. Coffin sailed from New York for Europe, accompanied by Mrs. Coffin, as correspondent of the *Boston Journal*. War had broken out between Austria on the one side and Italy and Germany on the other. It was of short duration; there was the battle of Custozza in Italy and Konnigratz in Germany, followed by the retirement of Austria from Italy, and the ascendancy of Bismarck over Baron Von Beust in the diplomacy of Europe. It was a favorable period for a correspondent and Mr. Coffin's letters were regularly looked for by the public. The agitation for the extension of the franchise was beginning in England. Bearing personal letters from Senator Sumner, Chief Justice Chase, General Grant, and other public men, the correspondent had no difficulty in making the acquaintance of the men prominent in the management of affairs on the other side of the water. Through the courtesy of John Bright, who at once extended to Mr. Coffin every hospitality, he occupied a chair in the speaker's gallery of the House of Commons on the grand field night when Disraeli, then Prime Minister, brought in the suffrage bill. While in Great Britain Mr. Coffin made the acquaintance not only of men in public life, but many of the scientists,—Huxley, Tyndal, Lyell, Sir William Thompson. At the social Science Congress held in Belfast, Ireland, presided over by Lord Dufferin, he gave an address upon American Common Schools which was warmly commended by the *London Times*.

An introduction to the literary clubs of London gave him an opportunity to make the acquaintance of the literary guild. He was present at the dinner given to Charles Dickens before the departure of that author to the United States, at which nearly every notable author was a guest.

Hastening to Italy, he had the good fortune to see the Austrians take their departure from Verona and Venice and the Italians assume possession of those cities. Upon the entrance of Victor Emanuel to Venice he enjoyed exceptional facilities for witnessing the festivities.

He was present at the coronation of the Emperor and Empress of Austria, as King and Queen of Hungary. Through the courtesy of Mr. Motley, then Minister to Austria, he received from the Prime Minister of the empire every facility for witnessing the ceremonies.

At Pesh he made the acquaintance of Francis Deak, the celebrated statesman—the John Bright of Hungary; also, of Arminius Vambrey, the celebrated Oriental traveller.

At Berlin he had the good fortune to see the Emperor William, the Crown Prince, Bismarck, Van Moltke, the former and the present Czar of Russia, and Gortschakoff, the great diplomatist of Russia, in one group. The letters written from Europe were upon the great events of the hour, together with graphic descriptions of the life of the common people.

After spending a year and a half in Europe, Mr. Coffin visited Greece, Turkey, Syria, Palestine, Egypt, sailing thence down the Red sea to Bombay, travelled across India to the valley of the Ganges, before the completion of the railroad, visiting Allahabad, Benares, Calcutta, sailing thence to Singapore, Hong Kong, Canton, Shanghai. Ascending the Yangtse six hundred miles to Wuchang; the governor of the province invited him to a dinner. From Shanghai he sailed to Japan, experiencing a fearful typhoon upon the passage. Civil war in Japan prevented his travelling in that country, and he sailed for San Francisco, visiting points of interest in California, and in November made his way across the country seven hundred miles—riding five consecutive days and nights between the terminus of the Central Pacific road at Wadsworth and Salt Lake, arriving in Boston, January, 1869, after an absence of two and a half years. During that period the *Boston Journal* contained every week a letter from his pen.

For one who had seen so much there was an opening in the lecture field and for several years he was one of the popular lecturers before lyceums. In 1869 he published *Our New Way Round the World*, followed by the *Seat of Empire*, *Caleb Crinkle* (a story) *Boys of '76*, *Story of Liberty*, *Old Times in the Colonies*, *Building the Nation*, *Life of Garfield*, besides a history of his native town. His volumes have been received with marked favor. No less than fifty copies of the *Boys of '76* are in the Boston Public Library and all in constant use.

Mr. Coffin has given many addresses before teacher's associations, and a course of lectures before the Lowell Institute. During the winter of 1878-9 a movement was made by the Western grangers to bring about a radical change in the patent laws. Mr. Coffin appeared before the Committee of Congress and presented an address so convincing, that the Committee ordered its publication. It has been frequently quoted upon the floor of Congress and highly commended by the present Secretary of the Interior, Mr. Lamar. Mr. Coffin also appeared before the Committee on Labor, and made an argument on the "Forces of Nature as Affecting Society," which won high encomiums from the committee, and which was ordered to be printed. The honorary degree of A. M. was conferred upon Mr. Coffin in 1870, by Amherst College. He is a member of the New England Historical and Genealogical Society, and he gave the address upon the one hundred and fiftieth anniversary of the settlement of his native town. He is a resident of Boston, and was a member of the Legislature for 1884, member of the Committee on Education, and reported the bill for free textbooks. He was also member of the Committee on Civil Service, and was active in his efforts to secure the passage of the bill. He is a member of the present Legislature, Chairman of the Committee on the Liquor Law, and of the special committee for a Metropolitan Police for the city of Boston. Mr. Coffin's pen is never idle. He is giving his present time to a study of the late war, and is preparing a history of that mighty struggle for the preservation of the government of the people.



John B. Clarke.

JOHN B. CLARKE

COLONEL JOHN B. CLARKE.

EDITOR AND PROPRIETOR OF THE MANCHESTER [N.H.] MIRROR.

Among the business enterprises in which the men of to-day seek fortune and reputation, there is scarcely another which, when firmly established upon a sound basis, sends its roots so deep and wide, and is so certain to endure and prosper, bearing testimony to the ability of its creators, as the family newspaper. Indeed, a daily or weekly paper which has gained by legitimate methods an immense circulation and a profitable advertising patronage is immortal. It may change owners and names, and character even, but it never dies, and if, as is usually the case, it owes its early reputation and success to one man, it not only reflects him while he is associated with it, but pays a constant tribute to his memory after he has passed away.

But, while the rewards of eminent success in the newspaper profession are great and substantial, the road to them is one which only the strong, sagacious, and active can travel, and this is especially true when he who strives for them assumes the duties of both publisher and editor. It requires great ability to make a great paper every day, and even greater to sell it extensively and profitably, and to do both is not a possible task for the weak. To do both in an inland city, where the competition of metropolitan journals must be met and discounted, without any of their advantages, requires a man of grip, grit and genius.

In 1852 the Manchester MIRROR was one of the smallest and weakest papers in the country. Its weekly edition had a circulation of about six hundred, that of its daily was less than five hundred, and its advertising receipts were extremely small. Altogether, it was a load which its owner could not carry, and the whole establishment, including subscription lists, good will, press, type and material, was sold at auction for less than a thousand dollars.

In 1885 the WEEKLY MIRROR AND FARMER has a circulation of more than twenty-three thousand and every subscriber on its books has paid for it in advance. The DAILY MIRROR AND AMERICAN has a correspondingly large and reliable constituency, and neither paper lacks advertising patronage. The office in which they are printed is one of the most extensive and best equipped in the Eastern States out of Boston. In every sense of the word the MIRROR is successful, strong and solid.

The building up of this great and substantial enterprise from so small a beginning has been the work of John B. Clarke, who bought the papers, as stated above, in 1852, has ever since been their owner, manager, and controlling spirit, and, in spite of sharp rivalry at home and from abroad and the lack of opportunities which such an undertaking must contend with in a small city, has kept the MIRROR, in hard times as in good times, steadily growing, enlarging its scope and influence, and gaining strength with which to make and maintain new advances; and at the same time has made it yield every year a handsome income. Only a man of pluck, push and perseverance, of courage, sagacity and industry, could have done this; and he who has accomplished it need point to no other achievement to establish his title to a place among the strong men of his time.

Mr. Clarke is a native of Atkinson, where he was born January 30, 1820. His parents were intelligent and successful farmers, and from them he inherited the robust constitution, the genial disposition, and the capacity for brain-work, which have carried him to the head of his profession in New Hampshire. They also furnished him with the small amount of money necessary to give a boy an education in those days, and in due course he graduated with high honors at Dartmouth College in the class of 1843. Then he became principal of the Meredith Bridge Academy, which position he held three years, reading law meanwhile in an office near by. In 1848 he was admitted to the Hillsborough county bar from the office of his brother, at Manchester, the late Honorable William C. Clarke, Attorney General of New Hampshire, and the next year went to California. From 1849 until 1851 he was practicing his profession, roughing it in the mines, and prospecting for a permanent business and location in California, Central America, and Mexico.

In 1851 he returned to Manchester and established himself as a lawyer, gaining in a few months a practice which gave him a living; but in October of the next year the sale of the MIRROR afforded an opening more suited to his talents and ambition, and having bought the property he thenceforth devoted himself to its development.

He had no experience, no capital, but he had confidence in himself, energy, good judgment, and a willingness to work for the success he was determined to gain. For months and years he was editor, reporter, business manager, accountant, and collector. In these capacities he did an amount of work that would have killed an ordinary man, and did it in a way that told; for every month added to the number of his patrons; and slowly but steadily his business increased in volume and his papers in influence.

He early made it a rule to condense everything that appeared in the columns of the MIRROR into the smallest possible space, to make what he printed readable as well as reliable, to make the paper better every year than it was the preceding year, and to furnish the weekly edition at a price which would give it an immense circulation without the help of travelling agents or the credit system: and to this policy he has adhered. Besides this, he spared no expense which he judged would add to the value of his publications, and his judgment has always set the bounds far off on the very verge of extravagance. Whatever machine promised to keep his office abreast of the times, and increase the capacity for good work, he has dared buy. Whatever man he has thought would brighten and strengthen his staff of assistants, he has gone for, and if possible got, and whatever new departure has seemed to him likely to win new friends for the MIRROR he has made.

In this way he has gone from the bottom of the ladder to the top. From time to time rival sheets have sprung up beside him, but only to maintain an existence for a brief period, or to be consolidated with the MIRROR. All the time there has been sharp competition from publishers elsewhere, but this has only stimulated him to make a better paper and push it successfully in fields which they have regarded as their own.

In connection with the MIRROR a great job printing establishment has grown up, which turns out a large amount of work in all departments, and

where the state printing has been done six years. Mr. Clarke has also published several books, including "Sanborn's History of New Hampshire," "Clarke's History of Manchester," "Successful New Hampshire Men," "Manchester Directory," and other works. Within a few years a book bindery has been added to the establishment.

Mr. Clarke still devotes himself closely to his business six hours each day, but limits himself to this period, having been warned by an enforced rest and voyage to Europe in 1872 to recover from the strain of overwork, that even his magnificent physique could not sustain too great a burden, and he now maintains robust and vigorous health by a systematic and regular mode of life, by long rides of fifteen to twenty-five miles daily, and an annual summer vacation.

In making the MIRROR its owner has made a great deal of money. If he had saved it as some others have done, he would have more to-day than any other in Manchester who has done business the same length of time on the same capital. But if he has gathered like a man born to be a millionaire, he has scattered like one who would spend a millionaire's fortune. He has been a good liver and a free giver. All his tastes incline him to large expenditures. His home abounds in all the comforts that money will buy. His farm is a place where costly experiments are tried. He is passionately fond of fine horses, and his stables are always full of those that are highly bred, fleet, and valuable. He loves an intelligent dog, and a good gun, and is known far and near as an enthusiastic sportsman.

He believes in being good to himself and generous to others; values money only for what it will buy, and every day illustrates the fact that it is easier for him to earn ten dollars than to save one by being "close."

A business that will enable a man of such tastes and impulses to gratify all his wants and still accumulate a competency for his children is a good one, and that is what the business of the MIRROR counting-room has done.

Nor is this all, nor the most, for the MIRROR has made the name of John B. Clarke a household word in nearly every school district in Northern New England and in thousands of families in other sections. It has given him a great influence in the politics, the agriculture, and the social life of his time, has made him a power in shaping the policy of his city and state, and one of

the forces that have kept the wheels of progress moving in both for more than thirty years.

In a word, what one man can do for and with a newspaper in New Hampshire John B. Clarke has done for and with the MIRROR, and what a great newspaper can do for a man the MIRROR has done for John B. Clarke.

DENMAN THOMPSON.

Throughout the United States where-ever the name of New England is held in respect there is the name of Denman Thompson a household word. His genius has embodied in a drama the finer yet homlier characteristics of New England life, its simplicity, its rugged honesty, its simple piety, its benevolence, partially hid beneath a rough and uncouth exterior. His drama is an epic—a prose poem—arousing a loyal and patriotic love for the land of the Pilgrims in the hearts of her sons, whether at home, on the rolling prairies of the West, in the sunny South, amid the grand scenes of the Sierras, or on the Pacific slope.

That Denman Thompson was not a native of New Hampshire was rather the result of chance. His parents were natives of Swanzey, where they are still living at a ripe old age, and where they have always lived, save for a few years preceeding and following the birth of their children. In 1831 the parents moved to Girard, Erie County, Pennsylvania, when, October 15, 1833, was born their gifted son. The boy was blessed with one brother and two sisters, and death has yet to strike its first blow in the family.

At the age of thirteen years Denman accompanied his family to the old home in Swanzey, where for several years he received the advantages of the education afforded by the district school. For his higher education he was indebted to the excellent scholastic opportunities afforded by the Mount Cæsar Seminary in Swanzey.

At the age of nineteen he entered the employ of his uncle in Lowell, Massachusetts, serving as book-keeper in a wholesale store, and in that city he made his *debut* as Orasman in the military drama of the FRENCH SPY.

In 1854, at the age of twenty-one years, he was engaged by John Nickerson, the veteran actor and manager, as a member of the stock company of the Royal Lyceum, Toronto. From the first his success was assured, for aside from his natural adaptation to his profession he possesses indomitable perseverance, a quality as necessary to the rise of an artist as genius. On the provincial boards of Toronto he studied and acted for the

next few years, perfecting himself in his calling and preparing for wider fields. Then he acted the rollicking Irishman to perfection; the real live Yankee, with his genuine mannerisms and dialect, with proper spirit and without ridiculous exaggeration, and the Negro, so open to burlesque. The special charm of his acting in those characters was his artistic execution. He never stooped to vulgarities, his humor was quaint and spontaneous, and the entire absence of apparent effort in his performance gave his audience a most favorable impression of power in reserve. His favorite characters were Salem Scudder in *THE OCTOROON*, and Myles Na Coppaleen in *COLLEEN BAWN*.

In April, 1862, Mr. Thompson started for the mother country, and there his reception was worthy a returning son who had achieved a well-earned reputation. His opening night in London was a perfect ovation, and during his engagement the theatre was crowded in every part. He met with flattering success during his brief tour, performing at Edinburg and Glasgow before his return to Toronto the following fall.

From that time must be dated the career of Mr. Thompson as a *star* or leading actor and manager, at first in low comedy, so called, or eccentric drama, and later, in what he has made a classic New England drama.

Mr. Thompson is the author of several very pleasing and successful comedies, but the play *JOSHUA WHITCOMB* is the best known and most popular. The leading character is said to have been drawn from Captain Otis Whitcomb, who died in Swanzey in 1882, at the age of eighty-six. Cy Prime, who "could have proved it had Bill Jones been alive," died in that town, a few years since, while Len Holbrook still lives there. General James Wilson, the veteran, who passed away a short time since, was well known to the older generation of today. The last scene of the drama is laid in Swanzey and the scenery is drawn from nature very artistically. Mr. Thompson is the actor as well as creator of the leading character in the play. The good old man is drawn from the quiet and comforts of his rural home to the perplexities of city life in Boston. There his strong character and good sense offset his simplicity and ignorance. He acts as a kind of Providence in guiding the lives of others. To say that the play is pure is not enough—it is ennobling.

The success of the play has been wonderful. Year after year it draws crowded houses—and it will, long after the genius of Mr. Thompson's acting becomes a tradition.

Mr. Thompson is a gentleman of wide culture and extensive reading and information. Not only with the public but with his professional brethren he is very popular on account of his amiable character. Naturally he is of a quiet and benevolent disposition, and has the good word of everyone to whom he is known.

As one of a stock company he never disappointed the manager—as a manager he never disappointed the public.

In private life he has been very happy in his marital relations, having married Miss Maria Bolton in July, 1860. Three children—two daughters and one son, have blessed their union.

A book could well be written on the adventures and incidents that have attended the presentation of the great play since its inception. Nowhere is it more popular than in the neighborhood of Mr. Thompson's summer home. When a performance is had in Keene the good people of Swanzey demand a special matinee for their benefit, from which the citizens of Keene are supposed to be excluded.

In Colorado a Methodist camp-meeting was adjourned and its members attended the play *en masse*. Such is the charm of the play that it never loses its attraction.

Mr. Thompson is in the prime of life, about fifty years old. His home is in New Hampshire; his birthplace was in Pennsylvania. He made his *debut* in Massachusetts, and received his professional training in Canada; he is a citizen of the United States, and is always honored where genius is recognized.

Like the favorite character, Joshua Whitcomb, in his favorite play, Mr. Thompson is personally sensitive, kind-hearted, self-sacrificing; he never speaks ill of any one, delights in doing good, and enjoys hearing and telling a good story; he is quiet, yet full of fun; generous to a fault. His company has become much attached to him.

In the village of Swansea is Mr. Thompson's summer home; a beautiful mansion, surrounded by grounds where art and nature combine to please. The hospitality of the house is proverbial, but its chief attraction is its well-stocked library.

NATIONAL BANKS.

THE SURPLUS FUND AND NET PROFITS.

BY GEORGE H. WOOD.

In the elimination of an unusually large amount of dead assets under the requirements of the National Bank law, previous to extension of the corporate existence of a bank, the very interesting question is brought to notice, of what is the proper construction of the law in regard to reducing and restoring the surplus fund.

Does the law forbid the payment of a dividend by a National Bank when the effect of such payment will be to reduce the surplus fund of the bank below an amount equal to one-tenth of its net profits since its organization as a National Bank; and if so, upon what ground? It does, and for the following reasons. The power to declare dividends is granted by section 5199 of the Revised Statutes of the United States in the following language: "The Directors of any association (National Bank) may semi-annually declare a dividend of so much of the *net profits* of the association as they shall judge expedient; but each association shall, before the declaration of a dividend, carry one-tenth of its net profits of the preceding half year to its surplus fund until the same shall amount to twenty per cent, of its capital stock."

The question at once arises, what are the net profits from which dividends may be declared, and do they include the surplus fund? It is held that the net profits are the earnings left on hand after charging off expenses, taxes and losses, if any, and carrying to surplus fund the amount required by the law, and that the surplus fund is not to be considered as net profits available for dividends, for, if it were, the Directors of a bank could at any time divide the surplus among the shareholders. It would only be necessary to go through the form of carrying one-tenth of the net profits to surplus, whereupon, if the surplus be net profits available for the purpose of a dividend, the amount so carried can be withdrawn and paid away at once,

thereby defeating the obvious purpose of the law in requiring a portion of each six month's earnings to be carried to the surplus fund, that purpose being to provide that a surplus fund equal to twenty per cent, of the bank's capital shall be accumulated.

The law is to be so construed as to give effect to all its parts, and any construction that does not do so is manifestly unsound. Therefore a construction which would render inoperative the requirement for the accumulation of a surplus fund cannot be correct, and the net profits available for dividends must be determined by the amount of earnings on hand other than the surplus fund when that fund does not exceed a sum equal to one-tenth of the earnings of the bank since its organization.

Having shown what the net profits available for dividends are, the only other question that can arise is: Can losses and bad debts be charged to the surplus fund and the other earnings used for paying dividends, or must all losses and bad debts be first charged against earnings other than the surplus fund, so far as such earnings will admit of it, and the surplus, or a portion of it, used only when other earnings shall be exhausted?

This question is virtually answered above, for if the object of the law in requiring the creation of a surplus fund may not be defeated by one means it may not by another; if it may not be defeated by paying away the amounts carried to surplus in dividends, neither may it be by charging losses to the surplus and at the same time using the other earnings for dividends.

Moreover, section 5204 of the Revised Statutes of the United States provides as follows: "If losses have at any time been sustained by any such association, equal to or exceeding its undivided profits then on hand, no dividend shall be made; and no dividend shall ever be made by any association, while it continues its banking operations, to an amount greater than its net profits then on hand, deducting therefrom its losses and bad debts."

This language fixes the extent to which dividends may be made at the amount of the "net profits" on hand after deducting therefrom losses and bad debts, and as it has been shown above that the surplus fund cannot be considered "net profits," available for dividends within the meaning of the law, it follows that in order to determine the amount of net earnings

available for dividends the losses must first be deducted from the earnings other than surplus.

It is to be observed also that section 5204 specifies that if losses have at any time been sustained by a bank equal to or exceeding its "*undivided profits*" on hand no dividends shall be made.

Now the surplus fund is not undivided profits, except in so far as it is earnings not divided among the shareholders. It is made upon a division of the profits—so much to the stockholders and so much to the surplus fund. If the law had intended that losses might be charged to surplus fund in order to leave the other earnings available for dividends it is to be presumed that care would not have been taken to use the words "*undivided profits*," in the connection in which they are used, as stated above.

Furthermore, if losses may be charged to surplus when at the same time the other earnings are used for dividends to shareholders, a bank may go on declaring dividends, and never accumulate any surplus fund whatever if losses be sustained, as they are in the history of nearly every bank. A construction of the law which would render inoperative the requirement for the creation of a surplus cannot be sound; and as the only way to insure that a surplus shall be accumulated and maintained is to charge losses against other earnings as far as may be before trenching upon the surplus; it must be that the law intended that the "*undivided profits*" which are not in the surplus fund shall first be used to meet losses.

To a full understanding of the subject it is proper to say that after using all other earnings on hand at the usual time for declaring a dividend to meet losses the whole or any part of the surplus may be used if the losses exceed the amount of the earnings other than surplus, and then at the end of another six months a dividend may be made if the earnings will admit of it, one-tenth of the earnings being first carried to surplus and the re-accumulation of the fund thus begun.

This is because the law has been complied with by charging the losses against the "*undivided profits*," as far as they will go, and it is impossible to do more, or require more to be done, for the re-establishment of the state of things that existed prior to losses having been sustained than to do what the law requires shall be done to originally establish that state of things.

CONCORD, N.H.

IMPRESSIONS D'UN FRANÇAIS.

PAR LE PROFESSEUR EMILE PINGAULT.

Quand les Français, les Français de France, comme disent leurs cousins canadiens, parlent de l'Amérique ou pensent à cette reine des républiques, ils n'ont en vue que les grandes villes. New-York, Boston, Philadelphie, Chicago, la Nouvelle Orléans etc. ... forment seuls, pour eux, l'immense continent découvert par Christophe Colomb.

Je voudrais essayer de réagir contre l'idée générale qu'on a, que la lumière, l'intelligence, la prospérité ne se trouvent que dans les grands centres.

La Providence a voulu que je vinsse établir ma tente dans une ville qui, bien qu'étant la capitale du New-Hampshire, paraît comme un point microscopique auprès des villes que j'ai citées plus haut. Eh bien, sans flatterie aucune, si l'on a pu appeler Boston l'Athène de l'Amérique, je ne vois pas pourquoi on n'appellerait pas Concord un petit *Rambouillet*, toute proportion gardée.

Je ne vous dirai pas que Concord est une petite ville située sur la Merrimac, de 14,000 à 15,000 habitants, mais ce que je puis vous dire c'est qu'il faudrait aller bien loin pour trouver une ville plus intelligente et plus éclairée, je dirais même plus patriarcale. Tout le monde s'y connaît et s'estime l'un l'autre. Il y a dans cette ville une émulation pour le bien et pour l'instruction qui ne peut être surpassée.

Outre les écoles publiques telles que la Haute École (High School), les écoles de grammaire, les écoles particulières, on y voit encore des professeurs de langues modernes, des professeurs de dessin et de peinture,

et parmi ces derniers un jeune artiste qui fera vraiment la gloire de l'Etat de Granit si la rlasse éclairée sait l'attacher permanemment à la capitale. La musique a une place privilégiée dans cette ville, les concerts de l'orchestre Blaisdelle sont suivis comme le seraient les premières de Booth et d'Irving. Il y a la plus que du sentiment, il y a véritablement de l'art, et un enfant de Concord, mort il y a deux ans, âge de vingt ans à peine, était une preuve manifeste que l'art est compris ici à un degré supérieure.

La littérature est cultivée avec le plus grand soin. Outre trois clubs, composés chacun d'une quinzaine de membres, qui étudient et admirent Shakspeare; une dame qui manie la parole comme le grand dramatishte maniait la pensée donne des conférences sur l'auteur d'*Hamlet* devant un auditoire aussi intelligent que nombreux.

Cet amour de s'instruire et d'étudier perce jusque dans les enfants les plus jeunes. Deux *Kindergarten* sont établis en cette ville; là, outre les choses aimables et utiles qu'on enseigne aux petits garçons et petites filles de cinq à six ans, on leur apprend aussi le français. Qu'il est beau de voir ces jeunes intelligences se développer an son de la belle langue de Bossuet, de Fénelon, de Lamartine et de Victor Hugo. Vous verrez à Concord un spectacle peut-être unique dans les Etats-Unis: une douzaine de petits Américains et Américaines chantant la *Marsellaise* et dansant des rondes de Bretagne et de Vendée avec une voix aussi douce et un accent aussi pur que s'ils étaient nés sur les bords de la Seine.

Ajoutez à ce tableau bien court et nullement exagéré que l'union et la paix régnent entre tous les habitants de la ville, que la police y est heureuse et fort peu occupée, et vous aurez l'idée de la tranquillité dont on jouit dans cet endroit privilégié.

J'avouerai franchement, pour finir, que si toutes les villes et villages ressemblaient à Concord, l'Amérique serait le premier de tous les mondes connus.

CLAYTON-BULWER TREATY VS. MONROE DOCTRINE.

BY GEORGE W. HOBBS.

In every conflict of European with American interests on the two continents, comprising North and South America, our countrymen always make their appeal to the "Monroe Doctrine" as the supreme, indisputable, and irrevocable judgment of our national Union. It is said to indicate the only established idea of foreign policy which has a permanent influence upon our national administration, whether it be Republican or Democratic, politically. A President of the United States, justly appealing to this doctrine, in emergency arouses the heart and courage of the patriotic citizen, even in the presence of impending war.

In view of this powerful sentiment swaying a great people, as well as their government, it is not surprising that Congress is often called upon to apply its principles; and it therefore becomes more and more important that it should be well understood by *people*, as well as Congress, in respect to its origin and purpose.

In the message of President Monroe to Congress, at the commencement of the session of 1823-24, the following passages occur:

"In the wars of the European powers, in matters relating to themselves, we have never taken any part, nor does it comport with our policy to do so. It is only when our rights are invaded, or seriously menaced, that we resent injuries, or make preparations for defence. With the movements in this hemisphere we are of necessity more immediately connected, and by causes which must be obvious to all enlightened and impartial observers. The political system of the allied powers is essentially different in this respect from that of America. This difference proceeds from that which exists in their respective governments; and to the defence of our own, which has been achieved by the loss of so much blood and treasure, and matured by

the wisdom of their most enlightened citizens, and under which we have enjoyed such unexampled felicity, this whole nation is devoted.

"We owe it, therefore, to candor, and to the amicable relations existing between the United States and those powers to declare—that we should consider any attempt on their part to extend their system to any portion of this hemisphere, as dangerous to our peace and safety. With the existing colonies or dependencies of any European power, we have not interfered and shall not interfere; but with the governments who have declared their independence and maintained it, and whose independence we have on great consideration, and on just principles acknowledged, we could not view any interposition for the purpose of oppressing them or controlling in any other manner their destiny, in any other light, than as the manifestation of an unfriendly disposition towards the United States."

"It is impossible that the allied powers should extend their political system to any portion of either continent, without endangering our peace and happiness.

"It is equally impossible, that we should behold such interposition in any form with indifference."

Lest there may be some misapprehension, as to the political circumstances, which called for the promulgation of this "Monroe Doctrine," let us for a moment review the events which gave color and importance to the political environments of that date which elicited from President Monroe this now famous declaration.

In the year 1822 the allied sovereigns held their Congress at Verona. The great subject of consideration was the condition of Spain; that country being then under the Cortes or representatives of the Revolutionists. The question was, whether or not Ferdinand should be re-instated in all his authority by the intervention of foreign powers.

Russia, Prussia, France, and Austria, were inclined to that measure; England dissented and protested, but the course was agreed upon; and France, with the consent of these other continental powers, took the conduct of the operation into her own hands. In the spring of 1823, a French army was sent into Spain. Its success was complete; the popular government was

overthrown, and Ferdinand was re-instated and re-established in all his power. This invasion was determined on and undertaken precisely on the doctrines which the allied monarchs had proclaimed the year before at Laybach; that is, that they had the right to interfere in the concerns of another State, and reform its government, "in order to prevent the effect of its bad example" (this bad example, be it remembered, always being the example of free government by the people). Now having put down the example of the Cortes, in Spain, it was natural to inquire, with what eyes they should look on the Colonies of Spain, that were following still worse examples. Would King Ferdinand and his allies be content with what had been done in Spain itself, or would he solicit their aid and would they grant it, to subdue his rebellious American colonies?

Having "reformed" Spain herself to the true standard of a proud monarchy, it was more than probable that they might see fit to attempt the "reformation" and re-organization of the Central and South American Colonies, which were following the "pernicious example of the United States," and declaring themselves "free and independent," it being an historical fact, that as soon as the Spanish King was completely reestablished he invited the co-operation of his allies in regard to his provinces in South America, to "assist him to readjust the affairs in such manner as should retain the sovereignty of Spain over them." The proposed meeting of the allies for that purpose, however, did not take place. England had already taken a decided course, and stated distinctly, and expressly, that "she should consider any foreign interference by force or by menace, in the dispute between Spain and the Colonies, as a motive for recognizing the latter without delay."

The sentiment of the liberty-loving people of the American Union was strongly in favor of the independence of the Colonies, which our government had already recognized; and it was at this crisis, just as the attitude of England was made known, that President Monroe's noble and patriotic declaration was made. Its effect was grand; it disarmed all organized attempts on the part of Spain and her allies to re-organize her "rebellious colonies"—now our sister republics in the western hemisphere—and shook the political systems of the world to their centres.

"The force of President Monroe's declaration," said Daniel Webster, "was felt everywhere by all those who could understand its object, and foresee its effect." Lord Brougham said in Parliament that "no event had ever created greater joy, exaltation, and gratitude, among all the freemen in Europe;" that he felt "proud in being connected by blood and language with the people of the United States;" that "the policy disclosed by the message became a great, a free, an independent nation."

Daniel Webster again said of it, "I look on the message of December, 1823, as forming a bright page in our history. I will neither help to erase it nor tear it out; nor shall it be by any act of mine blurred or blotted. It did honor to the sagacity of the government, and I will not diminish that honor. It elevated the hopes and gratified the patriotism of the people over these hopes. I will not bring a mildew, nor will I put that gratified patriotism to shame."

The effect of this declaration in Europe was all that could have been desired by the patriotic statesmen who contributed their counsel to its adoption. The message arrived in England on December 24, 1823—twenty-two days after Mr. Monroe delivered it to Congress. On the second of January. Mr. Camming, the British Minister of foreign affairs, told the American Minister that the principles declared in the message, that the American continents were not to be considered as subject to future colonization by any of the powers of Europe, greatly embarrassed the instructions he was about to send to the British Ambassador at St. Petersburg, touching the Northwestern boundary; and that he believed Great Britain would combat this declaration of the President with animation.

Its effect upon the then pending negotiations with Russia was so favorable, that the convention of 1824 was concluded in the Spring of that year, by the withdrawal on the part of the Emperor of his pretentious to exclusive trade on the Northwest coast, and by fixing the parallel of 54° 40' as the line between the permissible establishments of the respective countries.

This in brief is the history of the celebrated "Monroe Doctrine." It has never been affirmatively adopted by Congress, by any recorded vote, as the fixed and unalterable policy of this Republic; but its patriotic sentiment is

so deeply bedded in the hearts of the American people of every political opinion, that Congress ought not and dare not ignore it.

But did not the United States Senate, when it ratified the Clayton-Bulwer Treaty in 1850, practically ignore the "Monroe Doctrine" and open the door for future trouble? Let us examine this treaty, which, in the light of present Congressional action, has become an important element in American politics, and see if it is not antagonistic to the American policy, and more than the *bete noir* of partizan dreams. In order for a complete understanding of the terms, and bearing of this treaty, I deem it important to give a full synopsis, rather than a brief reference to its salient points:

THE CLAYTON-BULWER TREATY.

"A convention between the United States of America and her Britannic Majesty.

PREAMBLE.

"The United States and her Britannic Majesty, being desirous of consolidating the relations of amity, which so happily subsist between them, by setting forth and fixing in a convention their views and intentions with reference to any means of communication by ship canal, which may be constructed between the Atlantic and Pacific oceans, by way of the river San Juan de Nicaragua and either or both the lakes of Nicaragua or Managua, to any port or place on the Pacific ocean, the President of the United States has conferred full powers on John M. Clayton, Secretary of State of the United States, and her Britannic Majesty on the Right Honorable Sir Henry Lytton Bulwer, a member of her Majesty's most honorable Privy Council, Knight Commander of the most honorable order of Bath, and Envoy Extraordinary and Minister Plenipotentiary of her Britannic Majesty to the United States for the aforesaid purpose; and the said plenipotentiaries, having exchanged their full powers, which were found to be in proper form, have agreed to the following articles, viz:

Article 1. The governments of the United States and Great Britain hereby declare that neither the one nor the other will ever obtain, or maintain for itself, any exclusive control over the said ship canal; agreeing that neither

will ever erect or maintain, any fortifications commanding the same, or in the vicinity thereof: or occupy, or fortify, or colonize, or assume or exercise any dominion over Nicaragua, Costa Rica, the Mosquito Coast, or any part of Central America. Nor will either make use of any protection which either affords, or may afford, or any alliance which either has or may have, to or with, any state or people for the purpose of erecting or maintaining any such fortifications, or of occupying, fortifying, or colonizing Nicaragua, Costa Rica, the Mosquito Coast, or any part of Central America, or of assuming, or exercising dominion over the same; nor will the United States or Great Britain take advantage of any intimacy, or use any alliance, connection, or influence, that either may possess, with any state or government, through whose territory the said canal may pass, for the purpose of acquiring or holding, directly or indirectly, for the citizens or subjects of the one, any rights or advantages in regard to commerce, or navigation through the said canal, which shall not be offered on the same terms to the citizens or subjects of the other.

Art. 2. Vessels of the United States or Great Britain traversing the said canal shall, in case of war between the contracting parties, be exempted from blockade, detention, or capture by either of the belligerents, and this provision shall extend to such a distance from the two ends of the said canal, as may hereafter be found expedient to establish.

Art. 3. The persons and property engaged in building the said canal shall be protected by the contracting parties from all unjust detention, confiscation and violence.

Art. 4. Both governments will facilitate the construction of said canal and establish two free ports, one at each end of said canal.

Art 5. Both governments will guaranty and protect the neutrality of said canal; provided, however, that said protection and guaranty may be withdrawn by both, or either governments, if both or either should deem that the persons building or managing the same adopt or establish regulations concerning traffic therein, as are contrary to the spirit and intention of this convention, either by unfair discrimination, in favor of the commerce of one contracting party over the other, or by imposing oppressive exactions or unreasonable tolls upon passengers, vessels, goods,

wares, merchandise, or other articles,—neither party to withdraw such protection and guaranty without first giving six months notice to the other.

Art 6. Treaty stipulations maybe made with the Central American States, and states with which either or both parties have friendly intercourse; and settle all differences arising as to the rights of property in the canal, etc.

Art. 7. Contract to be entered into without delay, and the party first commencing labor, etc., in the construction of said canal, is to have priority of claim to construct the same, and will be protected therein by the parties to this treaty.

Art. 8. Both governments agree that protection shall be extended by treaty stipulations, hereafter to be made and entered into, to other communications or ways across said isthmus.

Art. 9. Treaty to be ratified by both governments and ratifications exchanged at Washington within six months."

This treaty bears date April 19, 1850, and is still in force in all its provisions.

Is there anything in the terms, conditions, or effect of this treaty, which in any way tends to militate or conflict with the declarations of the "Monroe Doctrine?"

To answer this question satisfactorily, and give a careful analysis of the treaty, in all its details, would take more time and space than I am at liberty to use; but I may be pardoned if I trespass a little and give a few reasons why I am come to the conclusion that the effect of the Clayton-Bulwer Treaty is to abrogate and annul to a great extent the cardinal principle of the "Monroe Doctrine."

In the first place the "Monroe Doctrine" was the accepted policy of this government as to all foreign intervention from 1823 to 1850, and with some of the leading minds of the country it has never ceased to be the paramount creed in the national catechism. During these twenty-seven years the project of building an inter-oceanic canal had been considerably agitated, in Congress and out, and had enlisted to some extent the sympathies of foreign powers who desired a shorter passage to the Pacific Ocean, the East Indies,

and the markets of Cathay, than the stormy ones around the southern capes of either hemisphere.

This agitation finally culminated in diplomatic correspondence between the representatives of Great Britain and the United States relative to the construction of such a means of communication and the rights of the two nations to the same, resulting in the treaty. In April, 1850, the Senate of the United States, by a very large vote, ratified and confirmed this treaty, notwithstanding it was vigorously opposed by such men as Stephen A. Douglas and Lewis Cass, then in the zenith of their fame.

It appears in the Congressional record of 1850, and subsequently, that the treaty was ratified without a very clear understanding of its meaning; and it was even hinted, in rather plain language, that the representative of Great Britain had been too sharp, too diplomatic for his American brother, and had overreached him. It further appeared that the honorable Senate was sadly deficient in knowledge of geography, and national boundaries; for it is matter of record, that many Senators voted for the ratification under the impression that British Honduras was included in the territory of Guatamala, and that the British settlements were in that republic; while, as a fact, Balize or British Honduras was on the easterly side of the Isthmus, never had been a part of that republic, and the British settlements were, and always had been, in Yucatan. They further understood the treaty to say, that neither government should occupy, fortify, or colonize Nicaragua, Costa Rica, the Mosquito Coast, or any part of Central America; but it is a fact, that at the very date of the treaty, at the date of the ratification, and since, Great Britain occupied and colonized the Mosquito coast, or that part which joins British Honduras on the northerly side of South Honduras; and Mr. Douglas, in 1857, in a debate in Congress upon a "resolution of inquiry as to the present status of the treaty," said: "I voted against the treaty, Mr. President, for the reason that I am unwilling to enter into any stipulations with any European power, that we would not do on this continent whatever we might think it our duty to do, whenever a case should arise. I voted against it because by clause 1 of that treaty we are debarred from doing what it might be our duty to do; but as it has been entered into, I desire to see it enforced. I am not yet aware that that clause of the treaty has been carried into effect. I have yet to learn that the British Government have withdrawn their protectorate from the Mosquito Coast; I have yet to learn

that they have abandoned the possession of that territory which they held under the Mosquito King."

From the day that treaty was ratified to the present, it has been a fertile source of discord and misunderstanding between the two governments; and from 1850 to 1858 its provisions were thrice made the basis of a proposal to arbitrate as to their meaning: their modification and abrogation have been alike contingently considered, and their imperfect and vexatious character have been repeatedly recognized on both sides. Even the present administration is laboring with the difficulty, and seeking some honorable way to free the treaty from its embarrassing features, or entirely abrogate it. President Buchanan, in 1858, characterized and denounced the treaty as "one which had been fraught with misunderstanding and mischief from the beginning;" and the leading statesmen of the country have felt that it was entirely inadequate to reconcile the opposite views of Great Britain and the United States towards Central America.

The Honorable James G. Blaine, late Secretary of State under the lamented Garfield, in his diplomatic correspondence with Lord Granville, in 1881, in summing up his review of the negotiations concerning this treaty, says: "It was frankly admitted on both sides that the engagements of the treaty were misunderstandingly entered into, improperly comprehended, contradictorily interpreted, and mutually vexatious."

An examination of the diplomatic correspondence and the Congressional Records of the years 1852-3-4 reveals what may perhaps be unknown history to many of my readers; that Great Britain within one year after she signed and ratified the Clayton-Bulwer Treaty, and agreed therein NOT "to colonize, fortify, or exercise control over, any part of Central America," did seize upon, colonize and partially fortify and exercise control over the five islands in the Bay of Honduras, called the Bay Islands; and that she did this in derogation of the declarations of the "Monroe Doctrine," and in direct violation and contempt of the Treaty, which she had so recently entered into; that this same national cormorant immediately surveyed and made a new geographical plan of Central America, in which she extended her province of Balize from the river Hondo, on the north, to the river Sarstoon on the south, and from the coast of the bay westward to the falls of Garbutts on the river Balize; or five times its original size; and then modestly

claimed that her possessions were not in Central America, and therefore not within the provisions of the Clayton-Bulwer Treaty; that she has to this day continued her protectorate, as she calls it, of the Mosquito Coast, and that within six days after the Treaty of California, which secured to us that "pearl of the occident," she seized San Juan and occasioned a brief naval excitement at Greytown, the port of the San Juan river. This last kick by Great Britain at the treaty she had so solemnly promised to abide by was the most barefaced and impudent of all; for it was at that time supposed by every body who had considered the question of an inter-oceanic canal, that if built at all it would be by way of the San Juan river, Lake Nicaragua, and across Nicaragua to the Pacific; thus making Greytown the important port of said canal, and the key to the control of the entire commerce thereon.

The diplomatic correspondence which followed this high-handed outrage, like all the diplomatic (?) correspondence concerning Central America, while firm and bold on the part of this government, yet lacked that moral force, national importance, and perfect fearlessness, which the fetters imposed by the treaty prevented us from using or exhibiting.

With the treaty out of the way, and the principles of the "Monroe Doctrine" imprinted as a legend upon our banners, we should have stood on unassailable ground; have exhibited a national importance and vitality—an uncompromising firmness, courage and dignity that would have carried conviction, achieved immediate and honorable success, and commanded the respect of the civilized world. But fettered, tantalized, and weakened, by the ambiguities and inconsistencies of this co-partnership treaty, the United States government was compelled to temporize, argue, and explain, and finally compromise with her co-partner, and graciously allow the disgraceful fetters to remain.

Did Great Britain withdraw her protectorate? No. Did she withdraw her colonies from the Bay Islands? No. Did she give up her new geography of Central America, and restore Balize to its original territory? No. Did she yield a single point in the controversy, except to give up and repudiate as unauthorized the seizure of San Juan? No. Not in a single instance when the territory of Central America was at stake, and the provisions of the treaty were concerned, did she yield a single point; but she has even claimed and argued, that under the proper interpretation of the terms of that treaty she

may hold all that she then enjoyed, and all that she can seize or buy, which is more than five statute miles from the coast line of any part of Central America; because, as she says, the treaty means the political, not the geographical Central America, and the political Central America is that part only of the continent which is contained within the limits of the five Central American republics; while the geographical Central America comprises all the territory and adjacent waters which lie between the republic of Mexico and South America; and that as Balize, Yucatan, and the Bay Islands, were not within the limits of the five Central American republics, they are no part of the Central America designated and intended in the treaty, and are not included in the term "other territory" used in said treaty.

The United States on the other hand claimed that the express language of the treaty, to wit: "that neither will occupy, or fortify, or colonize, or assume, or exercise any dominion over Nicaragua, Costa Rica, the Mosquito Coast, or any part of Central America," means the geographical Central America, including all that is not specifically enumerated from Mexico on the north, to New Grenada or the United States of Columbia on the south; that the claim of Great Britain was not a tenable or reasonable one, and that the understanding was, that neither government should thereafterwards acquire, or assume any control over, any part of the territory lying between Mexico and South America.

In the year 1853, during the discussion in the Senate upon the resolution of inquiry presented by Mr. Douglas, Mr. Clayton, then Senator from Delaware, admitted that the ambiguity of the treaty is so great, that on some future occasion a conventional article, clearly stating what are the limits of the Central America named in the treaty, might become advisable.

This admission, from the lips of the very man who so diplomatically (?) represented the United States in the making of this vexatious treaty, is rather significant, and aids us of this generation in coming to the conclusion that the Clayton-Bulwer Treaty is a disgrace to this republic, and ought to be at once abrogated.

Another historical fact, with which few are familiar, and which shows the animus of this treaty, is this: In 1849 Mr. Hise, our minister at Nicaragua, reported to the Honorable Secretary of State that Nicaragua had offered to

the United States, through him, "the exclusive right to build, maintain, and forever control an inter-oceanic canal across that republic; and offered to enter into treaty stipulations to that effect." Mr. Hise strongly urged the acceptance of this offer, and prepared and forwarded to the State Department a treaty, accepted by the government of Nicaragua, which confirmed in specified terms the offer of full and complete control and government of said canal. For reasons best known to the Department of State, this treaty, called the Hise treaty, was never accepted or presented to the Senate for ratification and adoption, but was somehow quietly smothered, and the Clayton-Bulwer co-partnership treaty reported and adopted in its stead.

It will be seen at a glance, by even the most careless political tyro, that the Hise treaty was directly in line and accord with the express principles of the "Munroe Doctrine;" and that it would have given to this country the exclusive rights, which under the treaty adopted it must share with its co-partner, Great Britain. Had the United States accepted the offer made by Nicaragua, and thus obtained the exclusive privilege of opening and controlling the canal, we could have opened it to the commerce of the world, on such terms and conditions as we should deem wise, just, and politic; and it would have been more creditable to us as a nation to have acquired it ourselves, and opened it freely to the use of all nations, rather than to have entered into a co-partnership by which we not only have no control in prescribing the terms upon which it shall be opened, but lose the right of future acquisition and control of Central American territory. Had we accepted it (or should we accept the recent offer of Nicaragua to the same general effect) we should have held in our possession a right, and a might, which would have been ample security for every nation under heaven to have kept the peace with the United States.

Honorable Stephen A. Douglas, in commenting upon the conduct of the State Department of 1849 and 1850, said: "When we surrendered this exclusive right we surrendered a great element of power, which in our hands would have been wielded in the cause of justice for the benefit of all mankind."

"But suppose," said Senator Clayton in reply, "that Great Britain and other European powers would not have consented to our exclusive control

of a canal, in which they, as commercial nations, had as much, and more interest, that we had?"

"Well, then," in the language of Senator Douglas, "if Nicaragua desired to confer the privilege, as it appears she did, and we were willing to accept, it was purely an American question with which England or any other foreign power had no right to interfere, or claim to be consulted, no more than we could claim to be consulted when the Holy Alliance sought to establish the equilibrium of Europe. We were not consulted then, and in matters purely continental we have no occasion to consult them; and if England, or any other foreign power, should attempt to interfere, the sympathies of the rest of the civilized world would be with us."

The policy of England has always been an aggressive one. While for nearly seventy years she has professed a friendship and national harmony with the United States, she has not ceased to plant her colonies and establish sentry boxes on every sea-girt island, that she could control, within a short voyage of our coast; while she has Gibraltar to command the entrance to the Mediterranean, a garrison at the Cape of Good Hope to control the passage to the Indies, she also maintains on the Bahamas and the Bermudas, in her well-equipped garrisons, vigilant sentinels whose eyes are ever watching the western continent in obedience to the royal behest; and in the magnificent island of Jamaica she has established, and maintained at enormous expense, a fortified and well-garrisoned naval station, which practically controls the Caribbean sea, the Gulf of Mexico, Central America, and even the contemplated canal itself; and yet not content with all this readiness and armament for aggressive war, she creeps still nearer the coveted prize and on the Bay Islands, almost in sight of the proposed canal, she plants her royal banner, and holds the key as the mistress of the situation; so that in case of war between the two countries she is well prepared for a quick and vigorous blow at the life of this republic.

She may have no occasion for many years to strike such a blow, but she will wait in readiness; and woe be to that national simplicity which puts its faith in princes, and takes no heed for the future.

What, then, is the duty of this republic in regard to the Central American problem? Shall we abrogate the patriotic principles contained in the

declarations of the Monroe doctrine, and confess that we have no definite American policy? Shall we withdraw from the honorable and patriotic position of defender and upholder of republicanism on this continent, and permit the royal wolves of devastation to run wild over our sister republics, because, forsooth, in an evil hour, we were led into an alliance which, under the name of a treaty, has embarrassed our action, clouded our judgment, and involved our self-respect? Shall the great American Nation, with its untold resources, its magnificent capabilities, and its sublime faith in the manifest destiny of this republic, calmly submit to the errors, mistakes, aye, blunders of its aforetime rulers, and under a mistaken sense of honor continue to be bound hand and foot by the terms of that pernicious treaty which might well be called the covenant of national disgrace?

I maintain that it is an utter impossibility for a treaty-making power to impose a permanent disability on the government for all coming time, which, in the very nature and necessity of the case, may not be outgrown and set aside by the laws of national progression, which all unaided will render nugatory and vain all the plans and intentions of men. In the language of Honorable Edward Everett, in his famous diplomatic correspondence with the Comte De Sartiges in relation to the Island of Cuba, in 1852, when asked to join England and France in a tripartite treaty, in which a clause was embodied forbidding the United States from ever acquiring or annexing that Island to this republic, "It may well be doubted, whether the Constitution of the United States would allow the treaty making power to impose a permanent disability on the American government for all coming time, and prevent it under any future change of circumstances from doing what has so often been done in the past. In 1803 the United States purchased Louisiana of France, and in 1819 they purchased Florida of Spain. It is not within the competence of the treaty-making power in 1852 effectually to bind the government in all its branches, and for all coming time, not to make a similar purchase of Cuba. There is an irresistible tide of affairs in a new country which makes such a disposition of its future rights nugatory and vain. America, but lately a waste, is filling up with intense rapidity, and is adjusting on natural principles those territorial relations which, on the first discovery of the continent, were, in a good degree, fortuitous. It is impossible to mistake the law of American progress and

growth, or think it can be ultimately arrested by a treaty, which shall attempt to prevent by agreement the future growth of this great republic."

The good faith of this nation demands that we should live up to all our treaties and agreements, so far as it is possible to do so; but when in the course of events, and by reason of the fixed decrees of growth, we are not able to do so, then it becomes us, in honor and fairness to others, as well as to ourselves, to take immediate measures to modify, and if necessary entirely rescind them, let the consequences be what they may.

The genius of America is progressive, and the pluck and activity of the average American is unsurpassed. Who shall say, then, that Central America shall never become part of this Republic, which now increases its population over a million each year? What statesman shall now in the light of experience seek to bind this nation within the limits of a treaty, that these United States will not annex, occupy, or colonize any new territory? If the Nicaragua Canal shall ever be constructed, will not American citizens settle along its line, and Yankee enterprise colonize, and build Yankee towns, and convert that whole section into an American state? Will not American principles and American institutions be firmly planted there? And how long will it be before the laws of progress shall require us to extend our jurisdiction and laws over our citizens in Central America—even as we were obliged to do in Texas? Perhaps not in our day and generation, but in the words of the lamented Douglas, "So certain as this republic exists, so certain as we remain a united people, so certain as the laws of progress, which have raised us from a mere handful to a mighty nation, shall continue to govern our action, just so certain are these events to be worked out, and you will be compelled to extend your protection-in that direction. You may make as many treaties as you please, to fetter the limits of this great republic, and she will burst them all from her, and her course will be onward to a limit which I will not venture to prescribe. Having met with the barrier of the ocean in our western course, we may yet be compelled to turn to the North and to the South for an outlet."

With a distinctly American policy, such as the Father of his Country foreshadowed and advised, when in his farewell address he warned us against "entangling alliances with foreign powers;" such as President Monroe bequeathed to us in the declarations of the "Monroe Doctrine," we

shall be more likely to achieve honor and renown; national prosperity and universal respect, than can ever be ours, while fettered and bound, by the galling chains of an entangling, unwise, and unfair treaty.

THE DIVORCE LEGISLATION OF MASSACHUSETTS.

BY CHESTER F. SANGER.

There evidently exists just at the present time a great and increasing interest in the old and much debated subjects of divorce, and divorce legislation; an interest which is intensified as the population of our younger states with their widely varying laws governing this matter increases and the dangers and opportunities for fraud grow more apparent. Naturally enough, therefore, public attention is invited to these different laws of the several states of our Union, some allowing divorce for one cause, others refusing it upon the same ground, and one state, at least, refusing to grant a divorce for any cause whatever. The remedy for this seems to many to be a national divorce law, establishing in all the states a uniform mode of procedure and a uniform basis upon which all petitions for divorce must be grounded; it must also fix the status of the parties in every state and prescribe the several property rights of each after the entry of the judicial decree which separates them from a union, not of God, as some would try to teach, but often from fetters, the weight and horror of which are known to the parties alone, or to those, who, unlike our theoretical reformers, have had some practical experience in the actual operation of our divorce courts.

While it is a fact, overlooked by the enthusiasts on this subject, that no such national law can be passed without an amendment to the constitution, since the passage of such an act would be an invasion of the rights reserved to the several states; yet in view of this widespread interest in the question, the development and present condition of the laws regulating divorce in our own Commonwealth becomes an interesting matter of inquiry. While such a discussion has little or nothing to do directly with the moral aspects of the subject, it is well to note in passing that the doctrine of the indissolubility of the marriage relation was not made a tenet of the church until as late as 1653. The Mosaic Law made the husband the sole judge of the cause for which the woman might lawfully be "put away," and many Biblical scholars

of great attainments have maintained that when rightly interpreted the words of Christ do not restrict divorce to the single cause of actual adultery, while elsewhere in the New Testament divorce for desertion is expressly sanctioned.

The Roman Catholic Church, while it pronounced the marriage tie indissoluble, at the same time reserved to the Pope the right to grant absolute divorce, a right which was often exercised for reward, while her Ecclesiastical Courts in the meantime declared many marriages null and void upon so-called impediments established solely upon the confession of one or the other of the parties seeking divorce. This course is hard to explain satisfactorily if we admit a sincere belief in the justice of her own dogma. It was from this practice of the Church that came the custom of granting partial divorce, or, as it was termed, divorce from bed and board—a divorce which was one only in name, and made a bad matter worse, surrounding both parties with temptations, and being, as it has been said, an insult to any man of ordinary feelings and understanding. It was, to be sure, an attempt to comply with the established doctrine of the Church, but it was a compromise with common-sense. To this same source may be traced the curious procedure in England, known as a suit for the restoration of conjugal rights, wherein a husband or wife, who, being unable to obtain a genuine divorce, had separated from his or her partner for cause, might be compelled by the power of the law to return to the "bliss too lightly-esteemed."

There is one state in our Union in which, as one of her Judges puts it, "to her unfading honor," not a single divorce has been granted for any cause since the Revolution. But the fact remains, not so much to her unfading honor, perhaps, that she has found it necessary to regulate by statute the proportion of his property which a married man may bestow upon his concubine, while at the same time adultery is not an indictable offence. Another of her Judges has said from the bench, "We often see men of excellent characters unfortunate in their marriages, and virtuous women abandoned or driven away houseless by their husbands, who would be doomed to celibacy and solitude if they did not form connections which the law does not allow, and who make excellent husbands and wives still."

This judicial utterance makes an excellent basis for the statement that it is better to adapt the law to facts as we find them, than to proceed on the principle that as there is no redress called for save where there is a wrong, if we do not allow the redress, there will, of course, be no wrong. There is no escape from the conclusion that divorce or irregular connections will prevail in every community; why not agree with Milton that honest liberty is the greatest foe to dishonest license?

When the founders of the new Commonwealth came to these shores they brought with them of necessity the laws of the mother country, and so we shall find that the divorce laws of England, as they existed at that time, were the early laws of the colonies of Plymouth and Massachusetts Bay. The Ecclesiastical courts of England were invested with full jurisdiction of all matters of divorce, but from about the year 1601 they had steadily refused to grant an absolute divorce for any cause whatever, although they as constantly granted divorce from bed and board, allusion to which has already been made; that is, they decreed a judicial separation of man and wife, which freed the parties from the society of each other, but at the same time left upon them all the obligations of the marriage vow as to third parties. Finally, when divorce was sought for cause of adultery, resort was had to parliament, and in 1669 an absolute divorce for that cause was granted by that body for the first time. This mode of procedure was, of course, a most expensive one, and during the seventeenth century but three decrees absolute were granted, the parties in each belonging to the peerage and the cause being the same.

In cases arising in the early history of the colonies we should therefore expect to find the law as I have briefly sketched it as existing in England, and as there were then no courts exercising the functions of the Ecclesiastical Courts we might safely look for the exercise of these powers by the Court of Deputies, or General Court, which was at that time not simply a deliberative body, but also a court of most extensive and varied jurisdiction, in matters both civil and criminal. This was precisely the fact; the records show that in 1652 Mrs. Dorothy Pester presented to the General Court her petition for leave to marry again, giving as her reason the fact that her husband had sailed for England some ten years before, and had not been heard from since. The court decreed that liberty be granted her to marry, "when God in his providence shall afford her the opportunity." In 1667 the

same court refused to grant a like petition, for the reason that they were not satisfied by the evidence that the husband had not been heard from for three years.

One year prior to this appears the first record of a divorce in the Plymouth colony, which, taken in connection with the two cases just referred to, throws a bright light on the unwritten laws then regulating this matter. Elizabeth, wife of John Williams, appeared with a petition asking for a divorce, and complaining of her husband because of his great abuse of, and "unnaturall carryages towards her, in that by word and deed he had defamed her character and had refused to perform his duty towards her according to what the laws of God and man requireth." Her husband appeared and demanded trial of the issue by jury, who found the complaint to be just and true. Thereupon the deputies "proseeded to pase centance" against him as follows: "that it is not safe or convenient for her to live with him and we doe give her liberty att present to depart from him unto her friends untill the court shall otherwise order or he shall behave himself in such a way that she may be better satisfyed to returne to him againe." He must also "apparell her suitably at present and provide her with a bed and bedding and allow her ten pounds yearly to maintaine her while she shall bee thus absent from him," and to ensure the faithful performance of the decree of the court he must "put in cecurities" or one third of his estate must be secured to her comfort. As he has also defamed his wife and otherwise abused her, it is further decreed that he must stand in the market place near the post, with an inscription in large letters over his head which shall declare to all the world his unworthy behavior towards his wife. And as though the poor man was not yet sufficiently punished they go on to say that "Inasmuch as these his wicked carriages have been contrary to the lawes of God and man, and very disturbing and expensive to this government, we doe amerce him to pay a fine of twenty pounds to the use of the Colonie." One is inclined to think upon reading this rather severe "centance" that if the law of our day was somewhat similar the divorce docket would not be so long as at present.

I have cited this case at considerable length for the reason that it shows that the divorces then granted, even in aggravated cases, were from bed and board, and that the right of the wife to a certain portion of the property of her husband was recognized and enforced. The other cases show that cruel

and abusive treatment and absence unexplained for the term of three years were then as now considered good grounds on which to seek separation.

The first legislation in our state bearing directly on our subject appears to have been in 1692, when it was provided that all controversies concerning marriage and divorce should be heard and determined by the Governor and Council, thus changing simply the tribunal without affecting the existing laws. Curiously enough, although the tribunal which should determine the controversies was thus fixed, there was no provision made for enforcing its decrees, and it was thus left practically powerless for sixty-two years, or until 1754, when this defect in the law was remedied by a provision that refusal or neglect to obey the decrees of the Governor and Council might be punished like contempt of courts of law and equity by imprisonment.

In 1693 were passed the first statutes regulating the subject of marriage in the colony, the preamble to which was as follows: "Although this court doth not take in hand to determine what is the whole bredth of the divine commandment respecting marriage, yet, for preventing the abominable dishonesty and confusion which might otherwise happen," certain marriages are declared to be unlawful and the issue thereof illegitimate, and severe and degrading punishments are provided for all offenders, even although innocent of any wrong intent.

As the population of the colony increased and spread over the country at a distance from Boston, the fact that the only court having jurisdiction of matters of divorce and marriage was held only in that town was the cause of ever-increasing inconvenience, and accordingly it was enacted in 1786 that "whereas, it is a great expense to the people of this state to be obliged to attend at Boston upon all questions of divorce, when the same might be done within the counties where the parties live, and where the truth might be better discovered by having the parties in court," jurisdiction in all matters of divorce should be vested in the Supreme Judicial Court, where it has ever since remained in spite of efforts made at various times to give to other courts concurrent or even exclusive jurisdiction. As the Supreme Judicial Court is now overworked, and as it is not deemed advisable, for various reasons, to increase its numbers, it is more than probable, in view of the increase in the number of libels annually filed, that some modification of our laws will soon be made which shall give the entire jurisdiction of this

matter either to the Superior Court or to the Judges of Probate in the several counties. Governor Robinson called the attention of the Legislature to the importance of some change in this direction in his last message, and urged speedy action.

The act of 1786, above alluded to, fixed the causes of divorce at two—adultery or impotency of either of the parties, but allowed a divorce from bed and board for extreme cruelty. To this was added in 1810 the further cause of desertion, or refusal to furnish proper support to the wife. To the two causes above named the Legislature of 1836 added a third, namely, the imprisonment of either party for the term of seven years or more at hard labor.

In 1698 it had been provided that in case of three years' absence at sea, when the voyage set out upon was not usually of more than three months' duration, the man or woman whose relation was in this way parted from him might be considered single and unmarried. In 1838 wilful desertion for five years was added to the then existing causes for absolute divorce, in favor of the innocent party, and in 1850 yet another cause was added by providing that if either party separated from the other and for three years remained united with any religious sect or society believing or professing to believe that the relation of husband and wife is void and unlawful, a full divorce might be granted to the other.

The law remained thus for ten years, or until the adoption of the General Statutes in 1860, when desertion for five years was made ground for granting a divorce to the deserting party also, provided it could be shown that such desertion was due to the cruelty of the other, or in case of the wife, to the failure of the husband to properly provide for her. Divorce from bed and board was also authorized for extreme cruelty, complete desertion, gross and confirmed habits of intoxication, if contracted after the marriage, and neglect of the husband to provide for his wife. Such limited divorces might be made absolute after five years' separation, on petition of the party to whom the divorce was granted, and after ten years on that of the guilty party. There was no change in these laws until 1870, when limited divorce, a relic of churchly superstition, was done away with entirely in this State, the grounds upon which it had been granted being at the same time made cause for absolute divorce, with the condition, however, that all such

divorces should be in the first instance *nisi*, that is, conditional, to be made absolute after three years in the discretion of the court, and after five years as of right. Prior to this time, in 1867, it had been enacted that all decrees of divorce should be first entered *nisi*, to be made absolute in six months in the discretion of the court, and this act of 1870 therefore left nine causes for absolute divorce; but in all cases for cruelty, desertion, intoxication, or neglect or refusal to support, the decree must remain conditional for at least three years. Since that date there have been many changes in the statutes, but all in the direction of regulating the entry of the decree, without affecting the causes therefor, except that in 1873, habits of intoxication, even if contracted before marriage, were made good grounds for a decree.

The law of 1841, which remained in force until 1853, forbade the marriage of the party for whose fault divorce was granted during the lifetime of the innocent partner; but in the latter year the court was authorized to allow the guilty party, except in cases of adultery, to remarry; and in 1864 it was provided that even in such cases the guilty one might marry after three years, unless actually tried and convicted of the crime. In 1873 even this restriction of three years was removed, and the law remained so until 1881, when it was enacted that the guilty party in all cases might marry after two years without the formality of applying to the court for leave so to do.

From this brief review of the history of our law there is but one conclusion to be drawn, that slowly but surely the doors to divorce have been opened until it has become a comparatively easy matter to obtain that relief which for so many years was absolutely refused. A few statistics will illustrate this: In the year 1863 there were in the state 10,873 marriages and 207 divorces; in 1882 there were 17,684 marriages and 515 divorces, or an increase in the former of 62.6 per cent., and of the latter of 147.6 per cent., while the population of the state increased in the same time 53.4 per cent. Since the legislation of 1870, which, as we have seen above, made divorce obtainable on nine grounds, the increase in the number of decrees granted has been 36 per cent., while in the same period marriages have increased but 20 per cent.

During this twenty years 79 per cent. of all divorces granted were for adultery and desertion, and of those granted for the first-mentioned cause

only a trifle over one-half were for the fault of the man; while, contrary to a widely-prevalent belief, the record shows that of the decrees entered for that cause the proportion is greater in the country districts than in our cities. In the same period the highest ratio of divorce to marriage has been one to twenty-three, and the lowest one to thirty-three, the average for the whole time being one to thirty-one; but in Suffolk County, comprising the cities of Boston and Chelsea and the towns of Winthrop and Revere, the average has been only one to forty-one and nine-tenths. These statistics are indeed startling, and may be easily used as a foundation for an argument that our laws governing the matter are far too lenient, since the number of divorces is so apparently excessive.

But on the other hand is it not as fair an inference from all the facts, that beyond and deeper than any provisions of the law there is something wrong in society itself; that we must look for the real root of the trouble in the influences which are operating upon our social life as a people? Our Judges who administer the law are learned, of great experience in the matter of weighing evidence, careful and conscientious. The laws are carefully framed to prevent collusion between the parties, and especially to render it difficult to obtain a divorce for the groundless desertion of the party seeking the separation; in fact they are far in advance of the laws of many of our sister states, and it has been truly said that the divorce laws of this Commonwealth have kept pace with the improved understanding of the condition of the people, and have been wisely framed to meet the many causes which exist in modern life to break up the domestic relations.

There is not one of our statutory causes for divorce which could be stricken out without a certainty of inflicting legal cruelty in the future. Of all our divorces nearly seventy per cent, are upon petition of the wife; and it can be safely said that nearly all will agree that to compel a woman to submit to the cruelty and brutalities of a drunken or profligate husband, is not only inflicting upon her legal cruelty, but has an influence which extends beyond the individual and is powerful for evil upon those who are to come after us.

Strangely enough as our educational advantages have increased, as more avenues of self support have been opened to women, so has the ratio of divorce to marriage also grown larger, thus apparently furnishing

conclusive proof that it is not legislative reform that is now needed. It is not necessary to argue that no legislation can operate in any way to strengthen those family ties which have their foundation in the social and domestic affections. On the other hand, any thing in the direction of education of the young tending to strengthen love of home and domestic life, and to do away with the prevalent tendency to what has been termed individualism, will be a step in the right path and will aid in lessening the evils which so many wrongly ascribe to faulty legislation. If any further proof of this fact is needed it is found in the knowledge that by far the larger part of the seekers for relief come from our native population, while none but those who have some practical experience in the realities of the divorce court room can know how intolerable are the burdens from which this relief is sought.

SHEM DROWNE AND HIS HANDIWORK.

BY ELBRIDGE H. GOSS.

The weird imaginings and romantic theories of our great story-teller, Hawthorne, must not be taken as veritable and indisputable history. Some of the Boston newspapers have recently run riot in this respect. Hawthorne, in his "Drowne's Wooden Image," in "Mosses from an Old Manse," says the figure of "Admiral Vernon," which has stood on the corner of State and Broad streets, Boston, for over a century, was the handiwork of one Shem Browne, "a cunning carver of wood." Upon this statement of the romancer, for there is no authentic history to warrant it, one paper, in an article entitled "A Funny Old Man," says: "Deacon Shem Drowne, the Carver. Concerning the origin of the carved figure of Admiral Vernon there can be no doubt. History, ancient records, and fiction all record the presence in Boston of one Deacon Shem Drowne, whose business it was to supply the tradesmen and tavern-keepers of the day with similar carved images to indicate their calling, or by which to identify their places of business."¹

Another, discoursing of this same image, as "Our Oldest Inhabitant," after attributing it to the same man's workmanship, states: "Deacon Shem Drowne, whose name suggests pious and patriarchal, if not nautical associations, carved the grasshopper which still holds its place over Faneuil Hall, and also the gilded Indian,² who, with his bow bent and arrow on the string, so long kept watch and ward over the Province House, the stately residence of the royal Governors of Massachusetts."³ This writer repeatedly spells the name wrong. His name was Drowne, not Droune.⁴ In "Drowne's Wooden Image," Hawthorne makes his Shem Drowne a wood-carver, plain and simple: "He became noted for carving ornamental pump heads, and wooden urns for gate posts, and decorations, more grotesque than fanciful, for mantle pieces." "He followed his business industriously for many years, acquired a competence, and in the latter part of his life attained to a dignified station in the church, being remembered in records and traditions as Deacon Drowne, the carver," and he connects him with the real Shem Drowne of history, only by speaking of him this once as "Deacon Drowne,"

and saying: "One of his productions, an Indian Chief, gilded all over, stood during the better part of a century on the cupola of the Province House, bedazzling the eyes of those who looked upward, like an angel of the sun;" plainly indicating that he thought the Indian was carved from wood, instead of being made, as it was, of hammered copper.

The real Shem Drowne was not a wood-carver; no authority for such a statement can be found. His trade is given as that of a "tin plate worker,"⁵ and a "cunning artificer" in metal;⁶ nowhere as a wood-carver. He was born in Kittery, Maine, in 1683. His father was Leonard Drowne, who came from the west of England to Kittery, where he carried on the ship building business until 1692, when, on account of the French and Indian wars, he removed his family to Boston, where he died, a few years after, and his grave is in the old Copp's Hill Burying Ground.⁷ At Boston Shem Browne established himself in his trade. He was elected a deacon of the First Baptist Church, in 1721. He was "often employed in Town affairs, especially in the management of Fortifications."⁸

He married Catherine Clark, one of the heirs of Nicholas Bavison, of Charlestown, who was a purchaser in the "Pemaquid Patent," or grant of the Plymouth Company, of some twelve thousand acres, to Messrs. Aldsworth and Elbridge of Bristol, England, made in 1631. Becoming interested in the claim of his wife, as one of the heirs, in 1735, he was appointed agent and attorney of the "Pemaquid Proprietors," in which capacity he acted for many years. It was sometimes called the "Drowne Claim." In 1747 he had the whole tract of land surveyed, and was instrumental in causing forty or more families to settle in that region. That he became blind, or nearly so, as early as 1762, is attested by a deed of land at Broad Cove (Bristol, Maine), made in that year to Thomas Johnston; a note in the margin of which states that it was "distinctly read to him on account of his sight;"⁹ but the signature is written in a large, plain hand. He died January 13, 1774, aged ninety-one years. He had a daughter, Sarah, who, in 1757, was married to Rev. Jeremiah Condry, who, from 1739 to 1764, was pastor of the First Baptist Church, of which church Mr. Drowne was a deacon. As a metal worker he made the grasshopper, Indian, and other vanes; but that he ever carved a pump head, urn, gate-post, "Admiral Vernon," or any other wooden image, there is not a scintilla of evidence; nothing but the figment of a romancer's brain.

The following letter to his nephew, Honorable Solomon Drowne of Providence, Rhode Island, is here printed by the kindness of Henry T. Drowne, Esq., of New York, who has many of the old papers of the Drowne families. It was written soon after his nephew's marriage, and is an interesting document; full of a sympathetic and kindly spirit; showing that the customs of his church, the Baptist, of that day, were very similar to those of the Evangelical churches of to-day; and gives an instance of "Catholic Christian Spirit" worthy of note. The use of the colon instead of the period is also noticeable:

BOSTON [Massachusetts],

August y^e 18, 1732.

LOVING KINSMAN:

Yours I received and have considered the Contents, and pray that your spouse may be directed and assisted by the grace and holy spirit of God to live in all good conscience before Him and this being the indispensable Duty of everyone when come to the use of Reason, with all seriousness to search the Scriptures, from thence to learn our Duty; and, then with Humility to devote ourselves to God, which is our reasonable Service; and, this being the awfulest solemnity that poor mortal man ever transacts in, whilst in this world: being to enter into Covenant with the Most High God. In the Concernment of a precious soul for a vast Eternity, ought to be entered upon with earnest prayer to God for his grace, that it may be sufficient for us, and that His strength might be made perfect in weakness: As for the order in which our Church admits Members into Communion: the Person who desires to joyn to the Church stands propounded a fortnight, in which time inquiry is made concerning their Life and Conversation: then they appear before the Church, make *Confession*, with their mouth, of their Repentance toward God, and their faith toward our Lord Jesus Christ: and, if nothing appears by information contrary to their *Confession*, then they are approved of by a vote of the Church, with all readiness; and so partake of the Holy ordinances—Baptism and the Lord's Supper.

Our breaking-bread day is always on the first Sabbath in every month, and, always on the Friday before it, we have a Church Meeting, which is carried on by prayer, in order to prepare for our approach to the Lord's table: at which Meetings *those* are sometimes heard and sometimes on the Sabbath, as circumstances best serve—so that any Person at a Distance may send to our minister to propound them to the Church timely, and order their coming, so as to partake of both ordinances on the same day: The Reverend Mr. Cotton of Newton, on occasion of a man of his Parish desiring to join in Communion with our Church, gave him a Letter of Recommendation, not as a member with him, but as of one in Judgment of Charity qualified by the grace of God to be received amongst us: which the Church received as a mark of his Catholic Christian Spirit.

That you and your spouse may be directed to do what may be most for the glory of God: and for your own Peace and Comfort, both for time and Eternity: that you may both walk in all the commands and ordinances of the Lord blameless is the Prayer and Desire of your loving uncle.

SHEM DROWNE.

Two of the three best known weather vanes made by Drowne, are still on duty; and one, the Indian chief, which for so many years decked the Province House, is now the property of the Massachusetts Historical Society, in one of the rooms of which it is to be seen, still swinging on its original pivot. From the sole of his foot to the top of his plume, it is four feet, six inches; and from his elbow to tip of arrow, four feet; weight forty-eight pounds.

The old grasshopper on Fanueil Hall¹⁰ was made in 1742, and has veered with the winds and been beaten by the storms of one hundred and forty odd years. It was last repaired in 1852, when there was found within it a much-defaced paper, only a part of which could be read:

SHEM DROWNE MADE ITT

May 25, 1742

To my Brethren and Fellow Grasshoppers

Fell in y^e year 1755 Nov 15th day from y^e Market by a great Earthquake ... sing ... sett a ... by my old Master above.

Again Like to have Met with my Utter Ruin by Fire, but hopping Timely from my Publick Situation came of with Broken bones, and much Bruised, Cured and again fixed....

Old Master's Son Thomas Drowne June 28th, 1763. And Although I now promise to Play ... Discharge my Office, yet I shall vary as ye wind.¹¹

The other one still in use is the old "Cockerel" of Hanover Street Church fame. This was made for the New Brick Church in 1721, and is the oldest of the three. It held its position on this church and its successors, one of which was long known as the "Cockerel Church," for one hundred and forty-eight years, when it was raised on the Shepard Memorial Church of Cambridge, where it now is. "It measures five feet four inches from bill to tip of tail, and stands five feet five inches from the foot of the socket to the top of comb, and weighs one hundred and seventy-two pounds."¹²

Possibly some other specimens of the handiwork of this good Deacon Shem Drowne are still in existence. Who knows?

1 ([return](#))

Boston Globe, October 18, 1884.

2 ([return](#))

Neither of these were carved; they were both of metal.

3 ([return](#))

Boston Evening Record, January 10, 1885.

4 ([return](#))

Fac-similes of his signature are given in "Memorial History of Boston," vol. II, p. 110, written in 1733, and in John Johnston's "History of Bristol, Bremen and the Pemaquid Plantation," p. 466, written in 1762.

5 ([return](#))

Johnston's "Bristol and Bremen."

6 ([return](#))

Samuel Adams Drake's "Old Landmarks of Boston," p. 135.

7 ([return](#))

Mss. letter of Henry T. Drowne, Esq., of New York.

8 ([return](#))

Samuel G. Drake's "History of Boston."

9 ([return](#))

History of "Bristol and Bremen."

10 ([return](#))

Drake in "Old Landmarks," says: "the grasshopper was long thought to be the crest of the Faneuils."

11 ([return](#))

Boston Daily Advertiser, December 3, 1852.

12 ([return](#))

Historical and Genealogical Register, vol. XXVII, p. 422.

THE WEDDING IN YE DAYS LANG SYNE.

BY REV. ANSON TITUS.

The story of courtship and marriage is ever fascinating. It is new and fresh to the hearts of the youthful and aged. A few words upon the marriage day in the early New England will not be without interest. September 9, 1639, the General Court of Massachusetts Bay Colony passed a law ordering intentions of marriage to be published fourteen days at the public lecture, or in towns where there was no lecture the "intention" was to be posted "vpon some poast standinge in publique viewe." On this same day it was ordered that the clerks of the several towns record all marriages, births and deaths. This was a wise provision. It at once taught the people of the beginning and of the designed stability of the new-founded government.

The course of true love did not run smooth in these early days any more than to-day. Parents were desirous of having sons and daughters intermarry with families of like social standing and respectability. But the youth and maid often desired to exercise their own freedom and choice. On May 7, 1651, the General Court ordered a fine and punishment against those who "seeke to draw away y^e affections of yong maydens." In the time of Louis XV, of France, the following decree was made: "Whoever by means of red or white paint, perfumes, essences, artificial teeth, false hair, cotton, wool, iron corsets, hoops, shoes, with high heels, or false tips, shall seek to entice into the bonds of marriage any male subject of his majesty, shall be prosecuted for witchcraft, and declared incapable of matrimony." The fathers of New England may have made foolish laws, but this one in France at a later time goes beyond them. The seductive charms of the sexes they deemed could not be trusted. Wonderment often comes to us of the thoughts and manners of the sage law-makers when their youthful hearts were reaching out after another's love.

The marriage day was celebrated with decorum. The entire community were conversant of the proposed marriage, for the same had been read in meeting and posted in "publique viewe." The earliest lawmakers of the

Colony were pillars in the church, and though they did not regard marriage an ordinance over which the church had chief to say, yet they desired an attending solemnity. In 1651 it was ordered that "there shall be no dancing vpon such occasions," meaning the festivities, which usually followed the marriage, at the "ordinary" or village inn.

The marriage of widows made special laws needful. Property was held in the name of the husband. The wife owned nothing, though it came from the meagre dowry of her own father. When the husband died the widow had certain rights as long as she "remained his widow." These rights were small at best, though the estate may have been accumulated through years of their mutual toil and hardships. We have notes of a number of cases, but give only a few. We omit the names of the contracting parties. "T—— C—— of A—— and H—— B—— of S——, widow were married together, September y^e 28th, 1748, before O—— B—— J.P. And at ye same time y^e s^d H—— solemnly declared as in y^e presence of Almighty God & before many witnesses, that she was in no way in possession of her former husband's estate of whatever kind soever neither possession or reversion." An excellent Deacon married an elderly matron, Dorothea ——, and before the Justice of Peace "Y^e s^d Dorothea declared she was free from using any of her former husband's estate, and so y^e s^d Nathaniel [the Deacon] received her." The following declarations are not without interest. "Y^e s^d John B—— declared before marriage that he took y^e s^d Hannah naked and had clothed her & that he took her then in his own clothes separate from any interest of her former husbands." Again a groom declares: "And he takes her as naked and destitute, not having nor in no ways holding any part of her former husband's estate whatever." We have also the declaration of a widower on marrying a widow in 1702, who had property in her own name, probably gained by will, "that he did renounce meddling with her estate." These declarations evidence that the widow relinquished, and that the groom received her without the least design upon the estate. It has been intimated that in a few instances these declarations became a "sign," but we can hardly credit it. The "rich" widow was taken out of the matrimonial problem.

The following affidavit is spread on the town records of Amesbury:

"Whereas Thomas Challis of Amesbury in y^e County of Essex in y^e Province of y^e Massachsetts Bay in New England, and Sarah Weed, daughter of George Weed in y^e same Town, County and Province, have declared their intention of taking each other in marriage before several public meetings of y^e people called Quakers in Hampton and Amesbury, and according to y^t good order used amongst them whose proceeding therein after a deliberate consideration thereof with regard to y^e righteous law of God and example of his people recorded in y^e holy Scriptures of truth in that case, and by enquiry they appeared clear of all others relating to marriage and having consent of parties and relations concerned were approved by said meeting.

Now these certify whom it may concern y^t for y^e full accomplishment of their intention, this twenty-second day of September being y^e year according to our account 1727, then they the s^d Thom^s Challis and Sarah Weed appeared in a public assembly of y^e afores^d people and others met together for that purpose at their public meeting-house in Amesbury afores^d and then and there he y^e s^d Thom^s Challis standing up in y^e s^d assembly taking y^e s^d Sarah Weed by y^e hand did solemnly declare as followeth:

Friends in y^e fear of God and in y^e presence of this assembly whom I declare to bear witness, that I take this my Friend Sarah Weed to be my wife promising by y^e Lord's assistance to be unto her a kind and loving husband till death, or to this effect; and then and there in y^e s^d assembly she y^e said Sarah Weed did in like manner declare as follweth: Friends in y^e fear of God and presence of this assembly whom I declare to bear witness that I take this my Friend Thom^s Challis to be my husband promising to be unto him a faithful and loving wife till death separate us, or words of y^e same effect. And y^e s^d Thom^s Challis and Sarah Weed, as a further confirmation thereof did then and there to these presents set their hands, she assuming y^e name of her husband. And we whose names are hereto subscribed being present amongst others at their solemnizing Subscription in manner afores^d have hereto set our names as witness."

Then follow the names of groom and bride, relatives on either side, and then the names of members in the assembly, first the "menfolks," then the "womenfolks." The names all told are forty-one. Among them is that of Joseph Whittier, which name with those of Challis and Weed have long been honored names in Amesbury.

The marriage gift to the husband on the part of his parents was usually a farm, a part of the homestead; the dowry to the young bride from her parents was a cow, a year's supply of wool, or something needful in setting up house-keeping. If the homestead farm was not large the young couple were brave enough to encounter the labors and toils of frontier life, and begin for themselves on virgin soil and amid new scenes. It required bravery on the part of the young bride. But there were noble maidens in those days. The cares and duties of motherhood soon followed, but the

house-cares and the maternal obligations were performed to the admiration of later generations. The fathers and mothers of New England were strong and hardy. Their praises come down to us. Witnesses new and ancient testify of their worth and royalty of character.

A REMINISCENCE OF COL. FLETCHER WEBSTER.

In a private conversation with the writer not long since General Marston, of New Hampshire, related the following story:

"On the morning of the thirtieth of August, 1862, before sunrise, I was lying under a fence rolled up in a blanket on the Bull Run battle-field. It was the second day of the Bull Run battle. My own regiment, the Second New Hampshire Volunteers, had been in the fight the day before and had lost one-third of the entire regiment in killed and wounded.

"While so lying by the fence some one shook me and said, 'Get up here.' In answer I said, without throwing the blanket from over my head, 'Who in thunder are you?' The answer was made, 'Get up here and see the Colonel of the Massachusetts Twelfth.'

"The speaker then partly pulled the blanket off my head and I saw that it was Colonel Fletcher Webster; whereupon I arose, and we sat down together and I sent my orderly for coffee.

"We sat there drinking the coffee and talking about his father, Daniel Webster, and he told me about his father going up to Franklin every year and always using the same expression about going. He would say 'Fletcher, my son, let us go up to Franklin to-morrow; let us have a good time and leave the old lady at home. Let us have a good old New Hampshire dinner—fried apples and onions and pork.' At about that time the Adjutant of Colonel Webster's regiment came along and told him that the General commanding his brigade wanted to see him. Colonel Webster replied that he would be there shortly.

"As he sat there on the blanket with me he took hold of his left leg just below the knee with both hands and said: 'There, I will agree to have my leg taken off right there for my share of the casualties of this day.' I replied: 'I would as soon be killed as lose a leg; and the chances are a hundred to one that you won't be hit at all.' 'Well,' said he as he gave me his hand, 'I hope to

see you again; goodbye.' I never saw him again. He was killed that day. His extreme sadness, his depression, was perhaps indicative of a conviction or presentiment of some impending misfortune."

OLD DORCHESTER.

BY CHARLES M. BARROWS.

The quaint old Puritan annalist, James Blake, wrote as a preface to his book of records:

"When many most Godly and Religious People that Dissented from y^e way of worship then Established by Law in y^e Realm of England, in y^e Reign of King Charles y^e first, being denied y^e free exercise of Religion after y^e manner they professed according to y^e light of God's Word and their own consciences, did under y^e Incouragment of a Charter Granted by y^e S^d King, Charles, in y^e Fourth Year of his Reign, A.D. 1628, Remoue themselues & their Families into y^e Colony of y^e Massachusetts Bay in New England, that they might Worship God according to y^e light of their own Consciences, without any burthensome Impositions, which was y^e very motive & cause of their coming; Then it was, that the First Inhabitants of Dorchester came ouer, and were y^e first Company or Church Society that arriued here, next y^e Town of Salem who was one year before them."

Nonconformity, then, was the "very motive and cause" which settled Dorchester, the oldest town but one in Puritan New England, and planted there a sturdy yeomanry to whom freedom of conscience was more than home and dearer than life. Nor was this "vast extent of wilderness" to which they succeeded by right of purchase from the heirs of Chickatabat any such narrow area as that of the same name, recently annexed to the city of Boston. It extended from what is now the northern limit of South Boston to within a hundred and sixty rods of the Rhode Island line, thus giving the township a length of about thirty-five miles "as y^e road goethe." The late Ellis Ames, of Canton, a competent authority, says the town "was formerly bounded by Boston, Roxbury, Dedham, Wrentham, Taunton, Bridgewater and Braintree," so that its history is the history of a large part of the towns in Norfolk county and a portion of Bristol. The manner in which the original territory has been gradually reduced is thus told by Mr. Ames: "Milton was set off in 1662; part of Wrentham, in 1724; Stoughton, in 1726; Sharon, in 1765; Foxborough, in 1778; Canton, in 1797; strips were also set off to Dedham, probably, in 1739; and before the whole was annexed, portions of the northern part of the town were set off to Boston, at two

several times: in 1804 and in 1855." Since that date another portion has been severed to make the northern quarter of Hyde Park. Honorable John Daggett, the historian of Attleborough, which was then a part of the Rehoboth North Purchase, says there was a dispute concerning the boundary between Dorchester and that town, which was finally settled by a conference of delegates, held at the house of one of his ancestors.

Why those "most Godly and Religious People" chose to settle where they did rather than on the Charles river, as at first intended, Mr. Blake proceeds to tell us in his annals. He says they made the voyage from England to New England in a vessel of four hundred tons, commanded by Captain Squeb, and that they had "preaching or expounding of the Scriptures every day of their passage, performed by Ministers." Contrary to their desires, the ship discharged them and their goods at Nantasket, but they procured a boat in which part of the company rowed into Boston harbor and up the Charles river, "until it became narrow and shallow," when they went ashore at a point in the present village of Watertown. But after exploring the open lands about Boston, they finally made choice of a neck of land "joyning to a place called by y^e Indians Mattapan," because it formed a natural inclosure for the cattle they had brought with them, and which, if turned into the open land, would be liable to stray and be lost. This little circumstance fixed the original settlement on the marsh now known as Dorchester Neck.

The honor of the name Dorchester appears to belong to Rev. John White, minister of a town of the same name in the mother country, who planned and encouraged the exodus to America. But the hardy little band of exiles who received the title from old Cutshumaquin, the successor of Chickatabat, little knew what their wild territory was destined to become in the course of a hundred years. They were loyal subjects of the English throne, building their log cabins and rude meeting-house on Allen's Plain under protection of a charter from King Charles; there they hoped to found a permanent town, where the worship of God should be maintained in accordance with the dictates of the Puritan conscience, without interference of churchman, Roman Catholic, Baptist, or Quaker. There was room in the unexplored forests to the south for pasturage and for the overflow, whenever, as Cotton Mather said when the whole state contained less than six thousand white inhabitants, "Massachusetts should be like a hive overstocked with bees."

The first meeting-house in Dorchester, a very unpretentious structure of logs and thatch, was completed in 1631, and no free-holder was allowed to plant his domicile farther than the distance of half a mile from it, without special permission of the fathers of the town. It stood near the intersection of the present Pleasant and Cottage streets, and that portion of the former highway between Cottage and Stoughton streets is supposed to have been the first road laid out in the early settlement. Shortly after, this road was extended to Five Corners in one direction, and to the marsh, then called the Calf Pasture, in the other. The present names of these extensions are Pond street and Crescent avenue. From Five Corners a road was subsequently laid out running, north-east to a point a little below the Captain William Clapp place, where there was a gate which closed the entrance to Dorchester Neck, where the cattle were pastured. It was on this street that Rev. Richard Mather, the first minister of the town, Roger Williams, of Rhode Island fame, and other distinguished citizens resided. The next undertaking in the way of public improvements was the building of two important roads, one leading to Penny Ferry, thus opening a highway of communication with the sister Colony at Plymouth; the other leading to Roxbury, Brookline and Cambridge.

In Josselyn's description of the town soon after its settlement may be read:

"Six myles from Braintree lyeth Dorchester, a frontire Town, pleasantly situated and of large extent into the maine land, well watered with two small rivers, her body and wings filled somewhat thick with houses, ... accounted the greatest town heretofore in New England, but now giving way to Boston."

Through what hardships and privations this infant freehold was maintained can be understood by those only, who have read the records of the colonial struggle against a sterile soil, a rigorous climate, grim famine, hostile Indians, and a total lack of all the appliances and comforts of civilization. The years 1631 and 1632 were a period of great distress to the Dorchester farmers, on account of the failure of their crops and supplies of provision, and Captain Clapp wrote concerning it: "Oh! y^e Hunger that many suffered and saw no hope in an Eye of Reason to be Supplied, only by Clams & Muscles, and Fish; and *Bread* was very Scarce, that sometimes y^e very Crusts of my Fathers Table would have been very sweete vnto me; And when I could have *Meal & Water & Salt*, boyled together, it was so

good, who could wish better. And it was not accounted a strange thing in those Days to Drink Water, and to eat *Samp* or *Homine* without Butter or Milk. Indeed it would have been a very strange thing to see a piece of Roast Beef, Mutton, or Veal, tho' it was not long before there was Roast *Goat*."

In 1740, the same year that Whitefield visited New England, on his evangelistic mission, the crops were again cut off by untimely frosts, and Mr. Blake wrote in his annual entry-book: "There was this year an early frost that much Damnified y^e Indian Corn in y^e Field, and after it was Gathered a long Series of wett weather & a very hard frost vpon it, that damnified a great deal more."

It is not unfair to suppose that the habits of rigid economy learned in this school of adversity influenced the passage of the celebrated law against wearing superfluities, quite as much as their austere prejudice against display. Be that as it may, the attention of the court was called to the dangerous increase of lace and other ornaments in female attire, and, after mature deliberation, it seemed wise to them to pass the following wholesome law:

"Whereas there is much complaint of the wearing of lace and other superfluties tending to little use, or benefit, but to the nourishing of pride, and exhausting men's estates, and also of evil example to others; it is therefore ordered that henceforth no person whatsoever shall presume to buy or sell within this jurisdiction any manner of lace to bee worne ore used within o^r limits.

"And no taylor or any other person, whatsoever shall hereafter set any lace or points vpon any garments, either linnen, woollen, or any other wearing cloathes whatsoever, and that no p^{son} hereafter shall be employed in making any manner of lace, but such as they shall sell to such persons but such as shall and will transport the same out of this jurisdiction, who in such a case shall have liberty to buy and sell; and that hereafter no garment shall be made wth short sleeves, whereby the nakedness of the arm may be discovered in the bareing thereof, and such as have garments already made wth short sleeves shall not hereafter wear the same, unless they cover their armes with linnen or otherwise; and that hereafter no person whatsoever shall make any garment for women, or any of their sex, wth sleeves more than halfe an elle wide in y^e widest place thereof, and so proportionable for bigger or smaller persons; and for the p^r sent alleviation of immoderate great sleeves and some other superfluities, w^{ch} may easily bee redressed wth out much pr udice, or y^e spoile of garments, as immoderate great briches, knots of ribban, broad shoulder bands and rayles, silk lases, double ruffles and caffes, &c."

But the court did not confine itself to prescribing the size of a lady's sleeves, or the trimming she might wear on her dress: it passed other timely

laws to restrain the idle and vicious and preserve good order throughout the community. It was ordered in 1632 "that y^e remainder of Mr. (John) Allen's strong water, being estimated about two gallandes, shall be deliuered into y^e hands of y^e Deacons of Dorchester for the benefit of y^e poore there, for his selling of it dyvers tymes to such as were drunke by it, knowing thereof."

In 1638 the court passed a curious law regulating the use of tobacco, which runs as follows:

"The Court finding since y^e repealing of y^e former laws against tobacco y^e law is more abused than before, it hath therefore ordered that no man shall take any tobacco in y^e field except in his iourney, or meale times, vpon pain of 12^d for every offence, nor shall take any tobacco in (or near) any dwelling house, barne, Corn or Haye, as may be likely to endanger y^e fireing thereof, vpon paine of 2^s for every offence, nor shall take any tobacco in any Inne or common victualling house; except in a private room there; so as neither the master of the same house nor any other gweste there shall take offence thereat; w^{ch} if they doo, then such p son is forth wth to forebeare, vpon paine of 2^s 6^d for every offence."

One office created by the court of that early period it might not be a bad idea for the authorities of the present day to revive. Wardens were appointed annually to "take care of and manage y^e affairs of y^e School; they shall see that both y^e Master & Schollar, perform, their duty, and Judge of and End any difference that may arrise between Master & Schollar, or their Parents, according to Sundry Rules & Directions," set down for their guidance.

In all matters coming within the province and jurisdiction of the colonial church the law was even more exacting than in merely civil affairs; and singularly enough, the town authorities took it upon themselves to seat all persons who attended divine service in the meeting-house where it seemed to them most proper. With the full approbation of the selectmen, responsible persons were sometimes allowed to construct pews or seats for themselves and their families in the meeting-house; but it appears on one occasion that three citizens undertook to "make a seat in y^e meeting-house," without first getting the full permission and consent of the town fathers, an act deemed exceedingly sinful, and for which they were arraigned before the town at a special meeting and publicly censured. After duly considering the case it was decided to allow the seat to remain, provided it should not be disposed of to any person but such as the town should approve of, and that the

offending parties acknowledge their "too much forwardness," in writing, which they did in the following manner:

"We whose names are underwritten, do acknowledge that it was our weakness that we were so inconsiderate as to make a small seat in the meeting-house without more clear and full approbation of the town and selectmen thereof, though we thought upon the conference we had with some of the selectmen apart, and elders, we had satisfying ground for our proceeding therein; w^{ch} we now see was not sufficient; therefore we do desire that our failing therein may be passed by; and if the town will grant our seat that we have been at so much cost in setting up, we thankfully acknowledge your love unto us therein, and we do hereupon further engage ourselves that we will not give up nor sell any of our places in that seat to any person or persons but whom the elders shall approve of, or such as shall have power to place men in seats in the assembly.

[Signed]. INCREASE ATHERTON,
SAMUEL PROCTOR,
THOMAS BIRD.

At another time one Joseph Leeds, a member of the church, was accused of maltreating his wife; the charge was sustained, and after the case had been considered at several special meetings, it was settled by his confessing and promising "to carry it more lovingly to her for time to come." But Jonathan Blackman, another erring brother, was charged with misdemeanors that could not be so easily overlooked; he was accused of lying and also of stealing. He had been whipped for these offences, but refused to come before the church for wholesome discipline, and ran away out of the jurisdiction. Accordingly he was "disowned from his church relation and excommunicated, though not deliuered up to Satan, as those in full communion, but yet to be looked at as a Heathen and a Publican unto his relations natural and civil, that he might be ashamed."

Another class of statutes—laws that have a queer sound in nineteenth-century Massachusetts—were designed for the encouragement of special public service. Here are examples of some of them:

"1638. For the better encouragement of any that shall destroy wolves, it is ordered that for every wolf any man shall take in Dorchester plantation, he shall have 20^s by the town, for the first wolf, 15^s for the second, and for every wolf afterwards, 10^s besides the Country's pay."

"1736. Voted, that whosoever shall kill brown rats, so much grown as to have their hair on them, within y^e town of Dochester, y^e year ensuing, until our meeting in May next, and bring in their scalps with y^e ears on unto y^e town treasurer, shall be paid by y^e town treasurer Fourpence for every rat's scalp."

The same year the town offered a bounty for the destroying of striped squirrels.

Now that the recent death of Wendell Phillips brings freshly to mind the bitter opposition with which the early champions of abolition were treated in Boston and vicinity, it is pleasant to find in the musty records of the Dochester Plantation emphatic evidence that they not only recognized slavery as an evil, and the slave-trade as a heinous crime, but that they set their faces like a flint against it. The traffic in slaves began among the colonists in the winter of 1645-6, and in the following November the court placed on record this outspoken denunciation of the practice:

"The Gen'all Co'te conceiving themselves bound by y^e first opertunity to bear Witness against y^e haynos & crying sin of man stealing, as also to prscribe such timely redresse for what is past, and such a law for y^e future as may sufficiently deter all others belonging to us to have to do in such vile and odious courses, iustly abhored of all good and iust men, do order y^t y^e negro interpreter wth others unlawfully taken, be y^e first opertunity (at y^e charge of y^e country for psent), sent to his native country in Ginny, & a letter wth him of y^e indignation of y^e Corte thereabout, and iustice hereof, desiring o^r hono^{red} Gov^{rnr} would please put this order in execution."

How men so clear in their convictions of the rights of Africans could be guilty of the most heartless injustice to Quakers and their friends, it is not easy to explain; and yet they mercilessly persecuted one of their own fellow-citizens, Nicholas Upsall, and made him an exile from his home, for no greater crime than that of countenancing and befriending members of the Society of Friends. He kept the Dorchester hostelry, and was wont to entertain Quakers as he did any other decent people; but for this he was apprehended and tried by the court, and sentenced to pay a fine of £20 and be thrown into prison. Finally, finding it impossible to entirely prevent his friends from holding intercourse with him, he was banished from the settlement for the remainder of his life. That curious book, "Persecutors Maul'd with their own Weapons," contains the following account of the case:

"Nicholas Upsall, an old man full of years, seeing their (the authorities) cruelty to the harmless Quakers that they had condemned some of them to die, both he and elder Wisewell, or otherwise Deacon Wisewell, members of the church in Boston, bore their testimonies in public against their brethren's horrid cruelty to the said Quakers. And the said Upsall declared that he did look at it as a sad forerunner of some heavy judgment to follow upon the country; which they took so ill at his hands, that they fined him twenty

pounds and three pounds more at another meeting of the court, for not coming to their meeting, and would not abate him one grote, but imprisoned him and then banished him on pain of death, which was done in a time of such extreme bitter weather for frost, snow and cold, that had not the heathen Indians in the wilderness woods taken compassion on his misery, for the winter season, he in all likelihood had perished, though he had then a good estate in houses and lands, goods and money, also a wife and children."

One of the officials who for a time had charge of poor Upsall during the period of his imprisonment was John Capen, of whom the old chroniclers have left a pleasanter record, namely, a transcript of several of his youthful love-letters. The following will serve as sample:

"SWEETE-HARTE,

"My kind loue and affection to you remembered; hauinge not a convenient oportunity to see and speake wth you soe oft as I could desier, I therefore make bold to take oportunity as occassione offers it selfe to vissit you wth my letter, desiering y^t it may find acceptance wth you, as a token of my loue to you; as I can assuer you y^t yours have found from me; for as I came home from you y^e other day, by y^e way I reseaued your letter from your faithfull messenger w^{ch} was welcom vnto me, and for w^{ch} I kindly thanke you, and do desier y^t as it is y^e first: so y^t may not be y^e last, but y^t it may be as a seed w^{ch} will bring forth more frute: and for your good counsell and aduise in your letter specified, I doe accept, and do desier y^t we may still command y^e casse to god for direction and cleering vp of your way as I hope wee haue hitherto done; and y^t our long considerations may at y^e next time bring forth firme concessions, I meane verbally though not formally. Sweete-harte I have given you a large ensample of patience, I hope you will learn this instruction from y^e same, namely, to show y^e like toward me if euer occassion be offered for futuer time, and for y^e present condesendancy vnto my request; thus w^{ch} my kind loue remembered to yo^r father and mother and Brothers and sisters wth thanks for all their kindness w^{ch} haue been vnderseuing in me I rest, leauing both them and vs vnto y^e protection and wise direction of y^e almighty.

"My mother remembers her love vnto y^{or} father and mother; as also vnto your selfe though as it vnknown.

"Yo^{rs} to command in anything I pleas.

"JOHN CAPEN."

In this connection may very properly be given another letter written at about the same date. Punkapoag, the summer residence of Thomas Bailey Aldrich, the poet editor of the Atlantic, was a part of colonial Dorchester and one of the points where the famous John Eliot began his missionary labors among the Indians. In the interest of the natives at that station he wrote the following letter to his friend, Major Atherton, in 1657:

"Much Honored and Beloved in the Lord:

"Though our poore Indians are molested in most places in their meetings in way of civilities, yet the Lord hath put it into your hearts to suffer us to meet quietly at Ponkipog, for w^{ch} I thank God, and am thankful to yourselfe and all the good people of Dorchester. And now that our meetings may be the more comfortable and p variable, my request is, y^t you would further these two motions: first, y^t you would please to make an order in your towne and record it in your towne record, that you approve and allow y^e Indians of Ponkipog there to sit downe and make a towne, and to inioy such accommodations as may be competent to maintain God's ordinances among them another day. My second request is, y^t you would appoint fitting men, who may in a fitt season bound and lay out the same, and record y^t alsoe. And thus commending you to the Lord, I rest,

"Yours to serve in the service of Jesus Christ,

"JOHN ELIOT."

Following this missive a letter on quite a different subject, dictated by the redoubtable Indian chief, King Philip, may be interesting. It bears date of 1672, and is addressed to Captain Hopestill Foster of Dorchester:

"S^r you may please to remember that when I last saw You att Walling river You promised me six pounds in goods; now my request is that you would send me by this Indian five yards of White light collered serge to make me a coat and a good Holland shirt redy made; and a p^r of good Indian briches all of which I have present need of, therefoer I pray S^r faile not to send them by my Indian and with them the severall prices of them; and silke & buttens & 7 yards Gallownes for trimming; not else att present to trouble you wth onley the subscription of

"KING PHILIP,

"his Majesty P.P."

One of the best commentaries on the lives and characters of the chief actors in the history of the Dorchester Plantation may be read on the tombstones that mark the places where their precious dust was deposited. From Rev. Richard Mather, the most noted pastor of the church of that period, to the humblest contemporary of his who enjoyed the rights and priveleges of a free-holder, none was so mean or obscure that a characteristic, if not fitting, epitaph did not mark the place of his sepulture. From the many well worth perusing, the following are singled and transcribed for the readers of this sketch.

Epitaph of James Humfrey, "one of y^e ruling elders of Dorchester," in the form of an acrostic:

"I nclos'd within this shrine is precious dust.
A nd only waits ye rising of ye just.
M ost usefull while he liu'd, adorn'd his Station,
E uen to old age he Seur'd his Generation.

H ow great a Blessing this Ruling Elder be
U nto the Church & Town: & Pastors Three.
M ather he first did by him help Receiue;
F lynt did he next his burden much Relieue;
R enowned Danforth he did assist with Skill:
E steemed high by all; Bear fruit Untill,
Y eilding to Death his Glorious seat did fill."

When Elder Hopestill Clapp died his pastor, Rev. John Danforth, composed the following verses for his grave stone:

"His Dust waits till ye Jubile,
Shall then Shine brighter than ye Skie;
Shall meet and join to part no more,
His soul that Glorify'd before.
Pastors and Churches happy be,
With Ruling Elders such as he;
Present useful, Absent Wanted,
Liv'd Desired, Died Lamented."

William Pole, an eccentric citizen of the village, before his demise, composed an epitaph to be chiseled on his monument, "Y^t so being dead he might warn posterity; or, a resemblance of a dead man bespeaking y^e reader;" so under a death's head and cross-bones it stands thus:

"Ho passenger 'tis worth your paines to stay
& take a dead man's lesson by ye way.
I was what now thou art & thou shall be
What I am now what odds twixt me and thee
Now go thy way but stay take one word more
Thy staff for ought thou knowest stands next ye door
Death is ye dore yea dore of heaven or hell

Be warned, Be armed, Believe, Repent, Fairewell."

The virtues of one who was "downright for business, one of cheerful spirit and entire for the country" are recorded in this fashion:

"Here lyes ovr Captaine, & Major of Suffolk was withall:
A Goodley Magistrate was he, and Major Generall,
Two Troops of Hors with him here came, svch worth his loue did crave;
Ten Companyes of Foot also movrning marcht to his grave.
Let all that Read be sure to Keep the Faith as he has don.
With Christ his liues now, crowned, his name was Hvmfrey Atherton."

The following was written on the death of John Foster, who is mentioned in the old annals as a "mathematician and printer":

"Thy body which no activeness did lack,
Now's laid aside like an old Almanack;
But for the present only's out of date,
'Twill have at length a far more active state.
Yes, tho' with dust thy body soiled be.
Yet at the resurrection we shall see
A fair EDITION, and of matchless worth.
Free from ERRATAS, new in Heaven set forth.
'Tis but a word from God the great Creator,
It shall be done when he saith Imprimator."

The clerk of the old Dorchester Church seems also to have been a maker of elegiac verse; for after the decease of Rev. Richard Mather, the pastor, and one of the ablest divines of colonial New England, the church records contain the two complimentary stanzas quoted below, the first being an evident attempt at anagram:

"Third in New England's Dorchester,
Was this ordained minister.
Second to none for faithfulness,
Abilities and usefulness.
Divine his charms, years seven times seven,
Wise to win souls from earth to heaven.

Prophet's reward his gains above,
But great's our loss by his remove."

Sacred to God his servant Richard Mather,
Sons like him, good and great, did call him father.
Hard to discern a difference in degree,
'Twixt his bright learning and his piety.
Short time his sleeping dust lies covered down,
So can't his soul or his deserved renown.
From 's birth six lustres and a jubilee
To his repose: but labored hard in thee,
O, Dorchester! four more than thirty years
His sacred dust with thee thine honour rears."

This couplet to three brothers named Clarke must suffice for epitaphs:

"Here lie three Clarkes, their accounts are even,
Entered on earth, carried up to Heaven."

Before taking leave of these fascinating old records, so rich in facts and the stuff that fiction is made of, it will be interesting to have an estimate of the growth of the Dorchester Plantation; for this purpose the valuation of the town is given, a century from the date of its settlement:

Houses,	117
Mills,	6
Acres of orchard,	250 1-2
Acres of mowing,	1834 1-4
Acres of pasture,	2873 1-2
Acres of tillage,	518 1-2
Male slaves,	10
Female slaves,	1
Oxen,	157
Cows,	661
Horses,	207
Sheep and goats,	661

Swine,	251
Value of feeding stock, etc., £	431
Decked vessels, tons,	64
Open vessels, tons	68
	132
Ratable polls,	252
Not ratable,	24
	276

The tax for that year, assessed on real estate, was £72 16s 6d; on personal estate, £9 14s 11d.

When all who took up the original claims on Allen's Plain had passed through the vicissitudes of their troubled lives and been numbered with the silent majority in the field of epitaphs, already alluded to, and their descendents were on the eve of the great struggle which was destined to sever them from the mother country, and the hearts of patriotic men began to feel the premonitory throbs of that spirit of independence soon to fire the first shot at Lexington, the Union and Association of Sons of Liberty in the province held a grand celebration in Boston, on the fourteenth of August, 1769. From John Adams's famous diary we learn that this jovial company, including the leading spirits of the time, first assembled at Liberty Tree, in Boston, where they drank fourteen toasts, and then adjourned to Liberty Tree Tavern, which was none other than Robinson's Tavern in Dorchester. There under a mammoth tent in an adjacent field long tables were spread, and over three hundred persons sat down to a sumptuous dinner. "Three large pigs were barbecued," and "forty-five toasts were given on the occasion," the last of which was, "Strong halters, firm blocks and sharp axes to all such as deserve them." The toasts were varied with songs of liberty and patriotism by a noted colonial mimic named Balch, and another song composed and sung by Dr. Church. "At five o'clock," says Mr. Adams, "the Boston people started home, led by Mr. Hancock in his chariot, and to the honour of the Sons, I did not see one person intoxicated."

HOLLIS STREET CHURCH.

The demolition of Hollis Street Church in this city destroys another old historic land-mark, which, like King's Chapel, the old State House, and other venerable structures, have a record that endears them to the popular heart. A brief sketch of the three buildings which have successively occupied the site, which is so soon to be left vacant, is worthy of preservation.

The name of the church and the street on which it stood was bestowed in honor of Thomas Hollis, of London, noted for his liberal benefactions; and his nephew of the same name devoted a bell for the edifice, in 1734.

The land on which the original structure was erected, was presented for that purpose by Governor Belcher, in 1731; and in April of the same year, by permission of the selectmen of Tri-Mountain, or Boston, a wooden building, sixty feet long and forty feet wide, was begun, which was finished and dedicated in midsummer of the following year.

In the great South End fire, on the twentieth of April, 1787, and in response to an imperative demand, a second, and larger wooden house, was erected on the site of the first, and made ready for occupancy in the course of the following year. This building was planned by Charles Bulfinch, and in its architecture resembled St. Paul's Church, now standing on Tremont street.

Within a year the Hollis Street Society has removed to an elegant new edifice on the Back Bay, and the brick building they left behind must now disappear in the march of improvement. It was erected in 1811, in order to accommodate the prosperous and rapidly-growing society for whom it stood as a place of worship. To make room for it, the wooden meeting-house already referred to was taken down in sections and removed to the town of Braintree.

The several clergymen who have been the honored pastors of Hollis Street Church are worthy of mention in this connection. The first was Rev.

Mather Byles, a lineal descendant of John Cotton and Richard Mather, who was ordained pastor, December 20, 1732. He was dismissed August 14, 1776, on account of his strong Tory proclivities. His immediate successor was Rev. Ebenezer Wright, a young divine from Dedham and a graduate of Harvard, who remained the pastor until the new meeting-house was finished, in 1788, when he was dismissed at his own request, on account of ill-health.

The next pastor was a man in middle life, who made himself an acknowledged power among the Boston clergy, Rev. Samuel West, of Needham. He died in 1808, and was succeeded by Rev. Horace Holley, from Connecticut, who was installed in March, 1809, and remained till 1818. Rev. John Pierpont, who resigned in 1845, made way for Rev. David Fosdick, who preached there two years, when Rev. Starr King was settled in 1845, and remained till 1861, Rev. George L. Chaney then took the place till 1877, and was succeeded by Rev. H. Bernard Carpenter, the present pastor.

ELIZABETH.[13](#)

A ROMANCE OF COLONIAL DAYS.

BY FRANCES C. SPARHAWK, Author of "A Lazy Man's Work."

CHAPTER XIII.—*Continued.*

Half an hour later Edmonson marched into his friend's room. His face was flushed, and his eyes had a triumphant glitter. It was an expression that heightened most the kind of beauty he had.

"You are booked for a visit, Bulchester," he began, seating himself in the chair opposite the other. "I have accepted for you; knew you would be glad to go with me."

"That is cool!" And Bulchester's light blue eyes glowed with anger for a moment. His moods of resentment against his companion's domination, though few and far between, were very real.

"Not at all. In fact it is a delightful place, and I don't know to what good fortune we are indebted for an invitation. Neither of us has much acquaintance with Archdale."

"Archdale? Stephen Archdale?"

"Yes. You look amazed, man. We are asked to meet Sir Temple and Lady Dacre. I don't exactly see how it came about, but I do see that it is the very thing I want in order to go on with the search. Another city, other families."

"But—." Bulchester stopped.

"But what?"

"Why, the possible Mistress Archdale,—Elizabeth. Of course I am happy to go, if you enjoy the situation."

A dangerous look rayed out from Edmonson's eyes.

"I can stand it, if Archdale can," he answered. "How fate works to bring us together," he mused.

"I don't understand," cried the other. "What has fate to do with this invitation?" Edmonson, who had spoken, forgetting that he was not alone,

looked at his companion with sudden suspicion. But Bulchester went on in the same tone. "If it is to carry out your purpose though, little you will care for having been a suitor of Mistress Archdale."

"On the contrary, it will add piquancy to the visit." Then he added, "Don't you see, Bulchester, that I dare not throw away an opportunity? Ship 'Number One' has foundered. 'Number Two' must come to land. That is the amount of it."

"Yes," returned Bulchester with so much assurance that the other's scrutiny relaxed.

"I suppose it is settled," said his lordship after a pause.

"Certainly," answered Edmonson; and he smiled.

Lady Dacre and train, having fairly started on their two day's journey, she settled herself luxuriously and again began her observations. But as they were not especially striking, no chronicle of them can be found, except that she called Brattle Street an alley, begged pardon for it with a mixture of contrition and amusement, and generally patronized the country a little. Sir Temple enjoyed it greatly, and Archdale was glad of any diversion. When they had stopped for the night, as they sat by the open windows of the inn and looked out into the garden which was too much a tangle for anything but moonlight and June to give it beauty, Lady Dacre sprang up, interrupting her husband in one of his remarks, and declaring it a shame to stay indoors such a night.

"Give me your arm," she said to Archdale, "and let us take a turn out here. We don't want you, Temple; we want to talk."

Sir Temple, serenely sure of hearing, before he slept, the purport of any conversation that his wife might have had, took up a book which he had brought with him. He was an excellent traveler in regard to one kind of luggage; the same book lasted him a good while.

Lady Dacre moved off with Stephen. They went out of the house and down the walk. She commented on the neglected appearance of things until Stephen asked her if weeds were peculiar to the American soil. In answer

she struck him lightly with her fan and walked on laughing. But when they reached the end of the garden, she turned upon him suddenly.

"Now tell me," she said.

"Tell you what?"

"Tell me what, indeed! What a speech for a lover, a young husband. Has the light of your honeymoon faded so quickly? Mine has not yet. Tell me about her, of course, your charming bride."

Stephen came to a dead halt, and stood looking into the smiling eyes gazing up into his.

"Lady Dacre," he said, "the Mistress Archdale you will find at Seascapè is my mother." Then he gave the history of his intended marriage, and of that other marriage which might prove real. His listener was more moved than she liked to show.

"It will all be right," she said tearfully. "But it is dreadful for you, and for the young ladies, both of them."

"Yes," he answered, "for both of them."

"You know," she began eagerly, "that I am the——?" then she stopped.

Stephen waited courteously for the end of the sentence that was never to be finished. He felt no curiosity at her sudden breaking off; it seemed to him that curiosity and interest, except on one subject, were over for him forever.

When Lady Dacre repeated this story to her husband she finished by saying: "Why do you suppose it is, Temple, that my heart goes out to the married one?"

"Natural perversity, my dear."

"Then you think she *is* married?"

"Don't know; it is very probable."

"Poor Archdale!"

Sir Temple burst into a laugh. "Is he poor, Archdale, because you think he has made the best bargain?"

"No, you heartless man, but because he does not see it. Besides, I cannot even tell if it is so. I believe I pity everybody."

"That's a good way," responded her husband. "Then you will be sure to hit right somewhere."

"I will remember that," returned Lady Dacre between vexation and laughing, "and lay it up against you, too. But, poor fellow, he is so in love with his pretty cousin, and she with him."

"Poor cousin! Is she like a certain lady I know who chose to be married in a dowdy dress and a poke bonnet for fear of losing her husband altogether?"

But Lady Dacre did not hear a word. She was listening to a mouse behind the wainscotting, and spying out a nail-hole which she was sure was big enough for it to come out of, and she insisted that her husband should ring and have the place stopped up.

When the party reached Seascap the summer clouds that floated over the ocean were beginning to glow with the warmth of coming sunset. The sea lay so tranquil that the flash of the waves on the pebbly shore sounded like the rhythmic accompaniment to the beautiful vision of earth and sky, and the boom of the water against the cliffs beyond came now and then, accentuating this like the beat of a heavy drum muffled or distant. The mansion at Seascap with its forty rooms, although new, was so substantial and stately that as they drove up the avenue Lady Dacre, accustomed to grandeur, ran her quick eye over its ample dimensions, its gambrel roof, its immense chimneys, its generous hall door, and turning to Archdale, without her condescension, she asked him how he had contrived to combine newness and dignity.

"One sees it in nature sometimes," he answered. "Dignity and youth are a fascinating combination."

In the hall stood a lady whom Archdale looked at with pride. He was fond of his mother without recognizing a certain likeness between them.

She was dressed elegantly, although without ostentation, and she came towards her guests with an ease as delightful as their own. Stephen going to meet her, led her forward and introduced her. Lady Dacre looked at her scrutinizingly, and gave a little nod of satisfaction.

"I am pleased to come to see you Madam Archdale," she said in answer to the other's greeting. There was a touch of sadness in her face and the clasp of her hand had a silent sympathy in it. It was as if the two women already made moan over the desolation of the man in whom they both were interested, though in so different degrees. But the tact of both saved awkwardness in their meeting.

Archdale stood a little apart, silent for a moment, struggling against the overwhelming suggestions of the situation. Even his mother did not belong here; she had her own home. Perhaps it would be found that no woman for whom he cared could ever have a right in this lovely house. When these guests had gone he would shut up the place forever, unless——. But possibilities of delight seemed very vague to Stephen as he stood there in his home unlighted by Katie's presence. All at once he felt a long keen ray from Sir Temple's eyes upon his face. That gentleman had a fondness for making out his own narratives of people and things; he preferred Mss. to print, that is, the Mss. of the histories he found written on the faces of those about him, which, although sometimes difficult to decipher, had the charm of novelty, and often that of not being decipherable by the multitude. Stephen immediately turned his glance upon Sir Temple.

"You are tired," he said with decision, "and Lady Dacre must be quite exhausted, animated as she looks. But I see that my mother is already leading her away. Let me show you your rooms."

Sir Temple's eyes had fallen, and with a bow and a half smile upon his lips, he walked beside his host in silence.

CHAPTER XIV.

THE HOSTESS.

The second morning of the visit was delightful. Madam Archdale had taken Lady Dacre to the cupola, and the view that met their eyes would have more admiration from people more travelled than these. On the east was the sea, looking in the early sunshine like a great flashing crescent of silver laid with both its arcs upon the earth. Down to it wandered the creek winding by the grounds beneath the watchers, turned out of its straight course, now to lave the foot of some large tree that in return spread a circle of shade to cool its waters before they passed out under the hot sun again; now to creep through some field, perhaps of daises, to send its freshness through all their roots and renew their courage in the contest with the farmers, so that the more they were cut down, the more they flourished, for the sun, and the stream, the summer air, and the soil, all were upon their side. Shadows fell upon the water from the bridge across the road over which the lumbering carts went sometimes, and the heavy carriages still more seldom. On the other hand, looking up the stream, were the hills from among which this little river slipped out rippling along with its musical undertone, as if they had sent it as a messenger to express their delight in summer. In the distance the Piscataqua broadened out to the sea, and beyond the river the city was outlined against the sky. To the left of this, and in great sweeps along the horizon stretched the forests. As one looked at these forests, the fields of corn, the scattered houses, the pastures dotted with cattle, the city, all signs of civilization, seemed like a forlorn hope sent against these dense barriers of nature; yet it was that forlorn hope that is destined always to win.

"Do you know, I like it?" said Lady Dacre turning to her hostess. "I think it all very nice. So does Sir Temple. Yet I don't see how you can get along without a bit of London, sometimes. London is the spice, you know, the flavor of the cake, the bouquet of the wine."

"Only, it differs from these, since one cannot get too much of it," answered Madam Archdale smiling, thinking as her eyes swept over the landscape that there were charms in her own land which it would be hard to lose.

Lady Dacre settled herself comfortably in one of the chairs of the cupola, and turning to her companion, said abruptly:

"Dear Madam Archdale, what is going to be done about that poor son of yours; he is in a terrible situation?"

"Indeed, he is."

"When is he going to get out? Have you done anything about it?"

"Done anything? Everything, rather. To say nothing of Stephen and my poor little niece. Elizabeth Royal is not a woman to sit down calmly under the imputation of having married a man against his will. And, besides, I have heard that she would like to marry one of her suitors."

"Do you know him?"

"Not even who it is. I imagine that Stephen does, but he does not tell all he knows."

"I have found that out," laughed Lady Dacre. "Indeed, I don't feel like laughing," she added quickly, "but it seems to me only an awkward predicament, you see, and I am thinking of the time when the young people will be free to tie themselves according to their fancies."

"I don't take it so lightly," answered the lady, "and my husband, when Stephen is out of the way, shakes his head dolefully over it. He believes Harwin's story, and in that case he argues badly. My husband has a conscience, and he does not intend that his son shall commit bigamy. Neither does Stephen, of course, intend to; but then, Stephen is in love with Katie, and he and Elizabeth Royal are disposed to carry matters with a high hand. But Katie has scruples, too, and she must, of course, be satisfied."

"Of course. What kind of person is this Elizabeth Royal?" asked Lady Dacre after a pause. "Is she pretty, or plain?"

"Not plain, certainly. She has a kind of beauty at times, a beauty of expression quite remarkable, Katie tells me. But I have not seen anything especial about her."

"You don't like her?" questioned Lady Dacre.

"Oh, yes, only that I think her rather cool in her manners. She is the soul of honor. She comes of good stock, some of the best in the country. Her mother was a connection of Madam Pepperell. I believe she is about to visit there with her father. We shall meet them both." And the speaker explained that the Colonel knew Mr. Royal well, and would be anxious to pay them some attention. "I suppose I am no judge of the young lady," she added. "I have not seen her since the wedding, and only a few times before that when she was visiting Katie. She is an heiress; I understand that she is very wealthy, much richer than my little niece will ever be."

"Ah!" said Lady Dacre. It seemed to her that she understood how troublesome Colonel Archdale's conscience must be to him in this matter. But the Colonel was a stranger to her, and at times Lady Dacre was severe in her judgments. Sir Temple declared that she never had any scruples over that second line of the famous poem of aversion,

"I do not like you. Dr. Fell."

"There is something I want to tell you," she said after a pause, "something about Sir Temple and myself." And her listener received the confidence that had been withheld from Stephen a few evenings before in the garden.

Lady Dacre had scarcely finished when there came the sound of feet on the stairs, a blonde head appeared in the narrow opening, another head of dull brown hair came close behind, and Gerald Edmonson, followed by Lord Bulchester, stepped into the cupola. Lady Dacre remembered at the moment what Archdale had said on the journey, that most peoples' shadows changed about,—now before, now on one side or the other, but Edmonson's always went straight behind him.

"May we come?" asked the foremost young man, bowing to each of the ladies.

"It is rather late to ask that," returned Madam Archdale, "but as you are here, we will try to make you welcome."

And they sat there talking until the sun grew too hot for them.

Meanwhile, Elizabeth Royal, the subject of Lady Dacre's curiosity, was thinking of the visit she was on her way to make which would bring her within a few miles of Seascape. She dreaded it, yet she knew that her father was right when he told her that the more she could appear to treat the question of this marriage as a jest,—a thing which meant nothing to her,—the wiser she would be. This was the course that by her father's advice she had marked out for herself. Elizabeth Royal had her faults; she sometimes tried her friends a good deal by them; but if she had been Lot's wife, and had gone out of Sodom with him, she would never have been left on the plain as a bitter warning against vacillation. Only, it seemed to her a very long time since her restful days had gone by, and she realized that the one course she hated was to do things because it was good policy to do them. Before Archdale she was brave; not only from pride, but out of pity to him; before others, all but her father, pride restrained her from complaint, even from admission of the possibility of the disaster she feared. But alone her courage often ebbed.

CHAPTER XV.

THE GUESTS.

The fourth morning from this as Madam Archdale and her guest were on their way to the garden they met Archdale in the hall.

"Come with us," cried Lady Dacre to him, pointing through the open door. But Archdale had letters to write and the ladies went on without him. A few rods away they saw Edmonson seated under an elm near the door. "He has lost his shadow," whispered Lady Dacre to her companion as they drew near, and she repeated Stephen's speech. Her listener smiled. Edmonson rose as he saw them and sauntered beside them through the shaded walks. But for all his brilliant conversation he did not keep Lady Dacre from remembering the gloomy look she had surprised upon his face. As they were walking Bulchester joined them. He explained that he had been paying a visit to Madam Pepperell, whom he had met in Boston during the spring. Lady Dacre noticed that he and his friend exchanged significant glances, but neither spoke to the other. Edmonson devoted himself to her, while Bulchester walked on with his hostess.

At last they all sat down to rest where the sea-breeze beginning to blow brought a refreshing coolness. Sir Temple Dacre came out looking for them, and on being questioned by his wife as to where Archdale was, professed his ignorance. "He must have a larger correspondence than you," she returned, "if he is still at work; he told me that he had letters to write."

"I think he has gone to ask a friend of his to dine with us," said his mother. "I saw him gallop off half an hour ago. We are going to be very quiet to-day that you may have a chance to rest; tomorrow guests have been invited to meet you. Stephen thought that this evening you might like a sail, —unless you have had too much of the water?" And she turned inquiringly to Lady Dacre.

"Oh, no," cried her ladyship. "I should be delighted. The moon fulls to-night Am I right, Temple?"

A few minutes later Edmonson and Bulchester having strolled down to the beach confronted one another there in silence, until the sound of a wave breaking seemed to rouse their surprise into speech.

"Edmonson," exclaimed the smaller man, "for once you are at fault. You did not describe her at all."

"The—!" cried Edmonson with a black look. "I was never so amazed in my life. What has got into the girl? She is a different creature. That present air of hers would take in London; better even than in this out-of-the-world hole, it would be more appreciated. And what thousands she has to carry it off well, or I ought to say, to carry it on well. That good-for-nothing," he added, "does not even understand his luck." There was an undertone in his voice which gave the bitter laugh with which he tried to hide it an intensity that made Bulchester look at him anxiously.

"You don't mean that you admire her so much as that?" he asked. Edmonson laughed again.

"My admiration of any woman will not injure my digestion. I believe you know my ideas on that subject. But such a figure for the head of one's table, and such golden accompaniments to her presentability—all mine, you know, or to be mine, and here this young lordship steps in between. Lordship; indeed! he thinks himself no less than a duke by his airs. But I—." He stopped, and ground his teeth to swallow his rage, and his face was so lowering that the other cried in trepidation:

"What are you going to do, Edmonson? Nothing,—nothing—uncomfortable, you know, I hope?"

Edmonson turned slowly upon him with the blackness of his look lightening into a smile as different from mirth as the brassy gleam behind a thundercloud is from sunshine. "What concerns your lordship?" he asked contemptuously. "Do you imagine that I shall forget my station?"

"Or your position as guest?"

"Or my 'position as guest?' No, indeed," sneered his listener. "What has come over you, Bulchester?" he added. "For how long are you engaged for

this role of dictator? I shall leave until it is over, you do it so badly." And he turned on his heel, grinding the pebbles under it hard as he did so.

"Nonsense, stay where you are, I beg," cried Bulchester with an assumption of indifference in his manner, and a tone of humility so incongruous that Edmonson glancing over his shoulder smiled in scorn, and having remained in that position a moment, came back to his little squire, and said impressively:

"Bulchester, we are beginning to burn; something will turn up here. I can't tell you why, but I feel it."

"You mean that you have a clue? That the name amounts to anything?" cried the other excitedly. "That you have found—?"

"Hush!" interrupted Edmonson. "Lady Dacre! Yes, I have found the air here delightful. My tedious headache is wearing away already. And here comes her ladyship to make us appreciate our blessings still more. Say, Bul," he added in a quick undertone as he was about moving forward to meet the new-comer, "how good does one have to be among this set? Have you any idea?"

"No, but I assure you your best will not pall."

Edmonson's smile of welcome to the lady broadened. "The fellow has quickness sometimes," he thought, "he has caught that from me."

"They are all following," said Lady Dacre. "But our kind host joined us just now, and he and his mother are arranging the hour for the sail, that is, if the wind will favor us."

"I should not think Archdale would be over fond of sailing," remarked Edmonson dryly.

"Why not?" asked Lady Dacre, then recollecting the story, added suddenly, "Do you think that is a real marriage, Mr. Edmonson?"

"I am sure I don't know," responded that gentleman nonchalantly.

"You see," explained Bulchester, "if that man is really a parson, they have not much of a set of witnesses to prove that the ceremony was a joke.

Harwin minus, though he has left his confession; Waldo interested in proving it a real marriage; Mistress Katie interested the other way, and the Eveleigh,—you have not seen the Eveleigh?"

Lady Dacre replied that she had not had that pleasure. As she spoke she intercepted a flashing glance from Edmonson to Bulchester. But she did not overhear the conversation between the two that took place later.

"Bulchester," Edmonson hissed out when they were alone, "what's the reason you always retail my opinions?"

Bulchester opened his mild eyes.

"Did I say any harm?" he asked. "I am sure I didn't mean it; what objection can you have to my giving your opinion on that matter, and I did not even say it was yours."

"Because—I do object," returned the other moodily. Then he said nothing more, rather to conceal the strength of his objections, than because his anger was over.

This happened a few hours later. At the same time Lady Dacre was speaking to her husband about Elizabeth. "I think that Archdale must feel the situation most on account of the young betrothed," Sir Temple said.

"That is all you know of a woman," she retorted indignantly. "Suppose I were tied to you and knew you did not care for me, I need not have come three thousand miles to find water enough."

"To drink?"

"No, you wretch; to drown myself in."

"You take too much for granted, don't you?" drawled Sir Temple with an amused look. "And I am afraid you are aping Ophelia. Now, you are not in her line at all; for one thing, you are too handsome."

Lady Dacre looked at him keenly, smiled with a moisture in her eyes, and came up to him.

"How much too much do I take for granted?" she asked softly. Sir Temple burst into a laugh, and kissed her.

"We will borrow poor Archdale's scales, and weigh it, and find out," he answered.

There was over a week of the beautiful weather that midsummer brings, and the days passed full of gayety. Both Archdale and his mother did everything for the enjoyment of their guests. They showed them the most beautiful views on shore, and by sailing took them to places of interest not to be reached by land, while dinner-parties and garden-parties made them acquainted with the best society of the city. From morning until night the house was full of talk, and jest, and laughter. Among the guests one day had been Mr. Royal and Mrs. Eveleigh. They had come with Colonel and Madam Pepperell, at whose house they were then visiting, in accordance with a promise made the autumn before when the Colonel and his wife had been guests of Mr. Royal. More than once, Elizabeth had met the party from Seascape, but she could not come here, she was not sure enough in her heart of not being Stephen Archdale's wife. She compromised with her father by promising to go to Colonel Archdale's, for that gentleman had told them that they were to be asked there.

"Elizabeth was right not to come," Madam Pepperell had said to her guest on the way to Seascape. "There are people small enough to have said that she was making an inventory."

"Not any of the Archdale family?" inquired Mr. Royal.

"Not mother or son, certainly. As to the Colonel, it is easy to see that he admires Elizabeth."

"Um!" commented Elizabeth's father.

Colonel Archdale at this time was away a good deal upon business. When he was at home he usually rode over to his son's house to dine. But he resolved to give a dinner party himself, and it was to this that Elizabeth Royal had promised to come. Madam Archdale being thus obliged to preside over two houses at once was full of secret uneasiness as to how matters would turn out, and for three mornings before the event excused herself to her guests from breakfast until dinner, and drove home to

superintend arrangements. Dinner parties were frequent at that house, and there was not much danger that anything would go wrong. Still, the Colonel was unusually critical, and his wife had her anxieties. On the whole, Sir Temple Dacre enjoyed himself most of anyone at that time, he gave himself up to observation and a proper amount of attention to his dinners, which he remarked to his wife were for provincial affairs uncommonly good. Lord Bulchester, trying to follow Edmonson's meanings, had a feeling of uncertainty which, as it did not rest upon a foundation of faith, such as used to underlie all his considerations of his friend's actions, ended by making him somewhat uncomfortable. Edmonson kept to himself whatever clue he had gained, or whatever ground for suspicion he had that one object of his visit to the Colonies was nearing its accomplishment. He kept to himself also as much as possible the fact that his eyes were constantly following Elizabeth whenever they had opportunity, for the new position in which she was placed had called forth unexpected resources in her which made her well-poised in bearing and manner. "She is great in reserve forces," he said to himself, swearing under his breath that she was growing more fascinating every time that he saw her, and for this he made opportunities as well as found them. Stephen Archdale with his alternations of gloom and gayety and the ubiquitousness necessary to a host, had begun to find this direction of Edmonson's eyes a matter that roused some slight speculation. His glances followed the arrowy glances of his guest to see what marks they made. But he saw nothing, except that Miss Royal avoided Edmonson as much as she could in courtesy, and that she seldom met his eyes fully. From these things both young men drew their conclusions, which were somewhat alike, and should both have been subject to correction. More than once they measured one another covertly, and from the heart of him who feared that he had lost her there stretched out toward the other a terrible shadow which in the wavering of his changing thoughts grew, and lessened, and grew again, and sometimes reached forward and clutched with its hideous hands, and then drew back, and crouched, and waited.

It was a perfect summer night when Elizabeth leaned out of her window into the stillness. The roar of the surf was as distinct as if it came from the pebbled beach below; yet, modulated by distance, it formed the base, sustained and rhythmic, into which there fell harmoniously that legato treble of murmur which makes us seem to hear the stillness, and that staccato note

of some accidental sound softened to accord with the mood of the night. She needed the peace that she felt in the air, for her cheeks were wet with passionate tears and her lips still trembled. She could give utterance to her trouble now, she was free for hours from every ear, from every eye, hidden away from all but the sight and hearing of the God she sought in the dark and the silence.

Brought up in the creed of the Puritans, believing it entirely, as she supposed, there was yet in her heart when she sent it Heavenward a joy which sprang from a more loving faith. Perhaps it was because of her own beautiful human associations with the name that at the words "Our Father," her heart swelled with confidence that God listened to her voice, and that his loving kindness wrapped her about. If her prayers were not always granted as she wished, she perceived that the hands she stretched out in pleading were never drawn back empty, for when they did not hold her requests, they were filled with what was to be given her tonight,—courage to meet the trials that she dreaded. The next day's trial was to be the worst of all, for it was then that they were to dine at the Colonel's, and Katie was to be there,—Katie, whom she loved dearly, whom she had robbed so unintentionally, and who would not forgive her. It would be hard for Archdale; but Elizabeth dismissed him from her thoughts, for her heart was full to overflowing of her own grief, and of Katie. Kneeling there, sobs shook her with an abandonment to her sorrow that was in itself a relief after her restraint. But at last the calmness and the strength of a life greater than its trials fell upon her. And when in the hush of these she went to her bed and fell asleep, it was a face like a child's that the stars shining in at her window looked down upon, a face fallen into lines of peace while the tears were yet undried upon the pale cheeks. But only in its simplicity was it a child's heart that met the next day's sunshine, for the courage of a strong woman looked from Elizabeth Royal's eyes.

CHAPTER XVI

THE DINNER PARTY.

Colonel Archdale with his hands behind him walked up and down his drawing-room in pleasant anticipation, with, it may be, a touch of the feeling which once animated an Eastern monarch over the great city that he had builded for the honor of his name. The Colonel had been like the monarch in one thing, that he had been born in wealth, not obliged to start at the very beginning of the race; he was like him in this also that he had made the very best of material opportunities; he had builded about himself, if not a great city, at least a great and profitable business, so that he had a reasonable expectation of leaving his son and his two surviving daughters—the latter still children—wealthier than his father had left him. The only drawback, and he had not yet found it a serious one, was that it was difficult to take as much money out of his profits as he would have liked to live upon, for his increasing business demanded always increasing capital. Also, he had done a great deal for Stephen, so that it required all his efforts to maintain the splendor in which he lived, outdoing his associates. All things considered, therefore, it was not so very strange that he should have resembled Nebuchadnezzar in the other respect of satisfaction in his own achievements. That day the cream of the society of Portsmouth and its neighborhood were to be at his house; most of them, without doubt, pleased to be invited. Peace and plenty were here. The war three thousand miles away, in which the brave young queen Maria Theresa was struggling for her inheritance, had just rolled a tidal wave across the Atlantic, and the news of the garrison taken from the English fort of Canso and carried prisoners to Louisburg had just reached Boston. This capture had been made before the Colonies had learned that war had been declared by France against Great Britain. Already there were signs of hostility among the Indians, and a movement of whole tribes toward Canada to join the French, whose old allies they were.

Still, so far, no heavy blow had been dealt, and this part of the coast had not even felt the shock of the wave. On the banks of the Piscataqua mirth

and feasting might go on, at least for a time. The Colonel looked about him again at the fine pictures on the walls, at the rich furniture fantastically carved, at his pretty youngest daughter, a girl of twelve, as she sat at the spinnet going over some music that somebody might ask her to play; perhaps it would be Lady Dacre herself whom she had seen once and greatly admired. When a moment later Madam Archdale came into the room he looked at her face and figure, still handsome and graceful. Her flowing brocade was of a becoming color, and nothing richer, that he knew of, had been worn in the Colonies. He felt a faint anxiety, which Sir Temple would have set down as provincial, to see the attitude of the English guests, for he flattered himself that he could do the honors of a mansion better than Stephen whose perfect simplicity annoyed his father when it let slip opportunities to make a fine impression. With Stephen and Madam Archdale, who certainly did very well, the Colonel had no doubt that Sir Temple and Lady Dacre had taken everything they found as a matter of course, and had not looked for quite the sort of thing that they were accustomed to at home. But here he thought that they would be a little surprised, that it would be to them England over again, and for a few hours they would fancy themselves in some old mansion there. He felt that to hear them say this would make his cup of satisfaction brim over, and this in some unintentional way he expected to draw from them.

"It's very warm," said his wife panting a little, "and, after all, I need not have hurried; nobody has come yet, or will come this half-hour, I dare say."

"Stephen is always prompt," suggested the Colonel, pausing in his measured walk to glance down the road.

"Yes, but then there are the English people. To be sure, they fall into our ways as if they had been born here, and Lady Dacre is as easy as an old shoe."

"My dear," said her husband, "I hope that is not the phraseology you are going to indulge in before our guests." Madam Archdale laughed.

"It would not shock them half as much as it does you," she answered. "I heard Sir Temple say the very thing the other day, and you would think of it yourself if you had on a pair of new slippers, as I have." The Colonel waived discussion, and took up another part of her answer.

"You say they fall into our ways as if they had been born here," he began. "Doesn't it occur to you that they may find them perfectly natural?"

"No, it does not at all. Think of it. Struggling against the savageness of man and nature must have roughened our manners a little, just as working on the ground roughens one's hands. It is healthy exercise; but, then, it tells, and we must expect that." She looked at her husband with such serenity as she spoke that he had no difficulty in remembering that she was the granddaughter of a Scottish earl and that he had been proud to give his children a lady for their mother. It seemed odd to him that both she and Stephen should have such an air of high birth, and yet be so indifferent to its prerogatives, so unambitious. "It is their good breeding;" she went on, "if you put them out into the wigwams they would make the Indians feel that eating with one's fingers was quite a thing to be enjoyed."

It was cruel; perhaps the speaker did not realize how cruel. But, then, she knew that the Colonel was thoroughly padded with vanity and that it must be a very skilful thrust, and a very vigorous one, that could wound him fatally.

"Faith," he began after a pause, "you have never been abroad, you have not observed as I have done, you—." He was gaining importance and impressiveness of tone as he went on; it was a pity that the sound of wheels and of horses' hoofs in the avenue interrupted what would have been one of his best presentations of the subject and have put him into an impregnable position. As it was, he had but to imagine himself there and forget his wife's opinion, which he did not find any difficulty in doing. The wheels were those of Colonel Pepperell's carriage; put together with English thoroughness, it had all the weight and unwieldiness of vehicles of that time. Lady Dacre, Elizabeth, and Mrs. Eveleigh descended from it; they had been spending the morning together. Sir Temple, Edmonson, Bulchester, and their host, on horseback, came galloping up as the carriage stopped. They had taken a longer and pleasanter road and had arrived on the moment. Sir Temple alighted with his face beaming with pleasure, for he had enjoyed the exercise. Lady Dacre had never looked better, and she had seen something more of provincial life and ways. He meant to travel over the world sometime; he liked to see new things. After dinner, when the guests were in the garden, he joined his wife for a moment, and told her

what had amused him by the way. "We went by one of those little houses so numerous about here," he said, "and an old man was mending his fence. It needed it badly enough. Archdale, as he went by, nodded to him pleasantly and called out an encouragement of his improvements. The old man looked up hammer in hand, and I expected to see something like what I should have had, you know, from the tenants at Alderly. But, Flo, he was so occupied, staring at Edmonson, whom he looked at first, that I had no chance at all with him, and poor Archdale didn't get even a nod. He just dropped his hammer and stood there agape. I think Archdale was annoyed at the exhibition of ill manners, for he talked very little the rest of the way here. Edmonson was so amused he could scarcely help chuckling over it. He asked our host if the old man was one of his tenants, and if he had been long on the place, and Archdale said 'yes.' Then Edmonson chuckled all the more."

As Sir Temple said, Stephen Archdale had been moody during the remainder of the ride. The old butler's behavior, so at variance with his usual deference, disturbed him. It was evident that Edmonson had come upon the man like an apparition. But why? Stephen intuitively connected this in some way with the conversation between the father and the son which he had overheard that winter's day in the woods. Glancing at his companion, he saw that Edmonson was aware of the startling effect he had produced, and that the answer was in his face, which was jubilant. Indeed, he could hardly restrain himself. Wheeling about in his saddle as they rode, he broke out into a few notes of some rollicking song, asking Sir Temple if he remembered it. To him this effect that he had produced meant that the first stroke of the hour, his hour, had sounded; to Archdale it meant that some mystery was here, some catastrophe impending. He could readily connect calamity with Edmonson.

At the door he dismounted like one lost in thought, and with difficulty threw off his moodiness; while Edmonson sprang to the ground and ran lightly up the steps into the house, his eyes sparkling and his face aglow with a beauty that Elizabeth was beginning to analyze. Before half an hour his wit was being quoted over the room. Other arrivals followed this first. There was reason enough why Elizabeth should have dreaded this dinner, for the guests in the drawing-room now had nearly all of them been present at that wedding scene seven months before. She knew when Katie Archdale

came in. It was almost at the last. She was leaning on her father's arm, her mother on his other. Both friends felt that every eye in the room would watch their meeting. There was an involuntary pause in the conversation; then it was taken up again here and there, languidly, to cover the attention that must not be marked. Katie had been into company very little since her attempted wedding; her presence was almost a new sensation. As usual, she behaved admirably. After greeting her aunt she slipped away from her father, and walked slowly forward, on the way speaking to those she passed. Her tones were mellowed a little by her suffering, but sweet and clear as ever. At last she came to Elizabeth. They had not been face to face since that December day in Mr. Archdale's library when Katie had turned away her head from Elizabeth's pleading. She did nothing of the kind now, she came forward with a chastened tenderness and said, "Elizabeth," and kissed her. It was Elizabeth, who the night before had been sobbing over Katie's hard lot and praying that happiness might come to her, and who was looking at her now with a heart full of contrition and admiration, who seemed to those watching to greet the girl coldly, to be indifferent to her beauty and her disappointment. Strangely enough, however, Stephen did not think so; he remembered the scene in the library, and it was possible that in the few times that he had met Elizabeth he had learned to understand her a little. He was quick of apprehension where his prejudices were not concerned, and he certainly had had no opportunity to be prejudiced against Elizabeth as one wanting to lay claim to him. And he knew better than any one else did how she hated the very thought of the yoke that might be laid upon her. His thoughts did not dwell upon her, however, for he saw that Katie was like her old affectionate self, that her unjust resentment had been only momentary; it would have been unnatural not to have felt so on that day, he reasoned. Now she was lovelier than ever, softened; by her suffering, the suffering he was sharing. He sighed, turned away, looking out of the window doggedly, turned back, and walked quickly up to her.

"How do you do?" he said, holding out his hand.

"How do you do, Stephen," she answered him, and laying her hand in his, looked into his face a moment, dropped her eyes and stood before him gravely, her color rising a little. A few trivial questions, a few remarks, a few answers simply given, and he bowed and moved away as her mother brought Edmonson up to her. He did not see her often now-a-days; there

was suffering to them both in meeting, and although he was still her lover in name as well as in heart, it was always with a dread lest the wall should be built up between them, and love be stifled in duty. He was ashamed of himself for his jealous fears when he saw other men paying her attentions; he never used to have these, but then he was strong to woo her; he could defy his rivals in fair field, and, as it had proved, could win the day. But now he was maimed in purpose, perhaps his hope was lost, his conscience was not clear in the matter as before, and he felt that in some way he had lost influence. The strong will that had won Katie was not at present matched by the strong hand that had made her admiring. The sense of being obliged to wait upon other's movements galled him; he was impatient, restless, a man who could not find in himself the comfort he sought, but who watched for news from a source that he felt was as ready to bring him death as life.

Elizabeth heard his greeting of Katie, though she was speaking to some one else when he came forward. She could not tell how it was that in some way she felt through it to its meaning.

"Sir Temple," she said a moment afterward, "allow me to introduce Major Vaughan; he has been a friend of Colonel Pepperell's a long time, and though I cannot claim such an acquaintance, I do claim a share in the regard in which all his friends hold him."

"And he holds it one of the white days of his life on which he first met this fair lady," gallantly responded Vaughan sweeping around the bow which acknowledged the introduction so that it included the presenter. Elizabeth smiled her thanks. She knew that the speech was not meant in sarcasm, although that any one should call it a white day on which he first met her seemed so; it had been a very black day to Stephen Archdale, she remembered.

"Major Vaughan can tell you more about the political state of the country, and its prospects, than any one else," she went on, "except, perhaps, Colonel Pepperell. How is it, Major, does he keep peace with you?"

"No, Mistress Royal, he distances me as far as a race-horse does an old cob. The cob has its uses, though," he added with a feint of resignation to

circumstances that he waited to hear denied. A flash of amusement shot over Elizabeth's face.

"When danger is scented from afar, when battles are to be fought, or hot work to be done, when spirit and daring are needed," she answered, "this 'old cob' that has been spoken of so disrespectfully will turn out a war-horse clothed with thunder, and swallowing the ground with fierceness and rage, if everybody else is not equally brave."

"You have hit the nail on the head," said Colonel Pepperell's voice behind her; "a good telling hit, too; that is Vaughan to the life. When this war that has just begun here grows hot we we shall hear from him."

"And from you, too," volunteered Sir Temple, who a few minutes before had been talking with the speaker.

"I hope I shall not be backward in the service of my king and my country," said Pepperell. "And all these men that are thinking merely of pleasure to-day I have no doubt will soon be deep in deadly work; for the war is coming upon us, we shall have to meet it."

As Elizabeth listened, she looked from one to another of the men about her, and her eyes fell at last upon Archdale. War was coming, and he would be sure to go to meet it; perhaps this would solve his difficulties for him and take him from the burden he hated, since perhaps it could, not be taken from him. Yet, it would be a hard way for a man so young,—with so much of life in him. The feeling that some one was watching her made her turn her eyes suddenly to the left whence the disturbing force had come. They met those of Edmonson, brighter than ever, and fixed upon her, as if he were reading her thoughts. Perhaps he had been, for he stood quite near and Colonel Pepperell's words had been loud enough to be heard by several. She moved her head, resenting the surveillance. What right had he to say to her in any manner, "I know what your trouble is." His further thought she did not arrive at. Stephen crossed the room and came up to the speaker. Edmonson resumed his conversation with Katie.

"Yes," said Stephen, "war has come. When are we to pay back the Canso affairs, and how? Our forts are not to be taken like that while we sit tamely

down and bear it; the sooner we act the better. Where shall we strike? Who is to tell us? We must have a General. There are soldiers enough."

Major Vaughan's eyes flashed, and he turned his feet one way and the other in a restlessness that would not find vent for itself in speech. Elizabeth looked at him with a smile at finding her prediction so instantly verified. But she, too, was silent.

"Mistress Royal," said a voice at her side, and in the unevenness of the tones more marked than usual she recognized Bulchester before she turned. "Will you introduce me to Mistress Katie Archdale?" he went on in a breathless undertone that only she could catch.

"She is the most beautiful creature I ever dreamed of—I mean—yes, I do mean that. I mean, too, that she shall be Lady Bulchester." He ended with a resolution which made Elizabeth turn pale.

"Oh, no!" she gasped; then silently drew him a little apart. "You must not dream of such a thing for a moment," she said. "Don't you know she is the same as married to her cousin?"

"No, I do not," he answered—"nor do you; you are possibly Mistress Archdale, yourself. Is the young man to be dog in the manger? Let him take care of himself. Do you forget that all is fair in love and war?"

An inimitable scorn swept over her face.

"No, I do not know any such thing when your opponent has his hands tied—for the time. But I am insulting Katie by pleading with you. She is true."

"You will introduce me?" he urged.

"No," answered Elizabeth, and moved away from him. Bulchester turning about also, found Lady Dacre almost at his elbow. He brought himself face to face with her and informed her of Elizabeth's refusal. Lady Dacre looked at him attentively; he had never appeared to her so manly as when he was boldly declaring his predilection.

"Of course she would not introduce you if you said all this to her. How could she? As for me, I am hands off; it is none of my business anyway,"

she said. "But, if you will pardon a word of warning at the outset from an unprejudiced observer—what makes you expect to win, over Stephen Archdale's head? He is a strong rival and first in the field."

"That's not everything to some women, the being first in the field, I mean," he answered, this time suppressing his repetition of his friend's belief that Archdale was no longer in the field.

"True."

"And do you think," he went on in a passionate undertone, "that I am fit for nothing but Edmonson's fag? I tell you Edmonson—" he stopped abruptly.

"What about him?" she asked, fixing her eyes upon him. But already Bulchester had drawn back.

"I have nothing to say about him," he answered, "only that there is no need of my walking always so close to him as to be thrown into the shade."

"No, there is not," she said, and glanced at the subject of their conversation, who stood talking to Katie in the most absorbed way. Lady Dacre comprehended the reason of Bulchester's present bitterness. But neither imagined that it was the conversation, and not the talker, that was interesting Edmonson. The girl was telling him bits of family history which he professed with truth to find fascinating. He was watching her, listening, smiling with his brightest look, speaking a word or two occasionally to draw forth more information, and Katie, sure that she was telling nothing too personal, went on, growing more animated by her subject in seeing the absorption of her companion, which in her heart she did not doubt came from his desire to keep her talking to him. Bulchester stopped a moment and drew nearer to his companion.

"When he looks like that," he said in her ear, "he is—he is,—dangerous." He straightened himself directly and walked on. Sir Temple spoke to Lady Dacre, and again Bulchester was left. But it might have been Madam Archdale who took pity upon him, for at last he obtained his introduction.

Why did Katie turn so readily from Edmonson to welcome the newcomer? Was it coquetry? Did she know intuitively that the eyes of the latter

held more true worship for her than the other's tones? Edmonson's eyes gleamed for a moment, and his face darkened. He looked at Bulchester from head to foot, reading him with contempt. Then with a bow that had a spice of mockery in it, as if he were amused at the rival whom he appeared not to dare to compete with, he resigned his place, and going up to Elizabeth, offered her his arm and moved away with her.

"Fate will be very kind to Stephen Archdale," he said as soon as they were out of hearing, "should it substitute you for that young lady, kinder to him than to you, since he was man enough to want her."

"You don't like Katie?" cried Elizabeth, ignoring the subject she shrank from. "You are the first person I ever heard of who did not."

"Pardon me. I did not say that I did not like her. I was making a comparison. She is an exceedingly pretty little puppet, and she goes through all her little tricks, if I may call them so without disparagement, with a delightful docility. After the clockwork is wound up, it doesn't hitch, or stop, until it runs down. But there is nothing unexpected about her; in five minutes you get to know her like a book."

"A book you have not read," cried Elizabeth with spirit.

Edmonson laughed. "Nobody would venture to predict your next acts or words," he said; "he would be a bold man that tried."

"No," she answered with sadness in her gravity. "I never know them myself. I have none of that poise which it is worth such a struggle to gain. That is the reason why—." She stopped, perhaps through consciousness that the conversation was getting toward egotism; perhaps because she did not want to give confidence where it was better that she should not.

"That is why you are so irresistible," Edmonson longed to finish; he even framed his lips for the words, but a glance at Elizabeth checked them. He wondered why, as he felt that a few months ago he would have spoken them unhesitatingly. It could not be because she was possibly Archdale's wife, for to believe her not that would please her better than anything else. Therefore, though he feared it, and had referred to it, he would have been glad to have denied it at the next moment. He would even have been glad to believe that he was restrained wholly by a question of how she would view this speech

in the light of the possibility. But he knew it was something more. He had seen the change in Elizabeth, and in smothered wrath had perceived that this growth which made her every day more interesting seemed to be in some way withdrawing her from him. He struggled against allowing this dim feeling to become a perception. For she might be free; then she should become his wife: she might be already bound; in that case,—again the terrible shadow darkened his face for an instant. Then he recollected himself, and his eyes, seeking a visible object, rested on her face a little sad with its dwelling upon her unfinished sentence which would have spoken of her mistakes. A flash of perception revealed the truth to him; he saw the gulf that yawned between his nature and hers, and, almost cursing her for being so above him, there came to him a strange longing to feel some touch upon him which would give his face the calmness that under its pathos he read upon hers. It was no determination to struggle to a higher plane, no desire for it, but only the old cry for some one to be sent to cool the tip of his tongue because the flame tormented him. It was not, however, an appreciable lapse of time before he again felt his feet upon the floor and thrilled under the light touch upon his arm. The insight was over, the whirl was over; he was one of the guests talking to his host's probable daughter-in-law. He went on with his subject. "At least you have not changed your nature," he said with courteous freedom. "You are royal still in defence of your friends. I shall not attack them again."

"You would better not," she answered more than half in earnest.

"And Katie is—."

"Yes, I know," he said. And she felt so keenly that he did know all about it that she readily drew away from him when Archdale came up with some one to speak to her. Stephen saw the movement; Edmonson felt it. "Proud as Lucifer," thought the latter, "will not own where it galls her. She is the kind to hate him if she is bound to him in this way."

PUBLISHERS' DEPARTMENT.

NOTES.

The welcome accorded to the BAY STATE MONTHLY by the reading public of New England during the past year has demonstrated the fact that the magazine has entered a field in which there is room for it to thrive. To many the idea of a local magazine is novel; so in its inception was the idea of a local newspaper, now generously supported by nearly every hamlet in the Union.

The GRANITE MONTHLY for New Hampshire and the BAY STATE MONTHLY for Massachusetts are pioneers: their claim for existence is shown by their existence. The growth of each depends upon the patronage afforded by the public. The indications now are that the BAY STATE MONTHLY is fairly launched on a long and prosperous voyage.

*** END OF THE PROJECT GUTENBERG EBOOK THE BAY STATE
MONTHLY, VOLUME 3, NO. 1 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.



Charles Carleton Coffin

[back](#)



John B. Clarke,

[back](#)